

Digital Society Promotion Standard Guidelines DS-920

The Guideline for Japanese Government's Procurements and Utilizations of Generative AI for the sake of Evolution and Innovation of Public Administration

June 12, 2026

Approved by the Council for the Promotion of a Digital Society
Executive Board Meeting

[Positioning of this Document]

Normative

A document specifying the rules to be adhered to regarding the development and management of government information systems.

[Keywords]

Generative AI, Large Language Models (LLM), Policy for the Utilization of Generative AI in Government, AI Governance Framework (Generative AI Projects, High-Risk Generative AI, Advanced AI Utilization Advisory Board, Chief AI Officer (CAIO), Risk Management in the Procurement and Utilization of Generative AI (Planning, Procurement, Development and Operation, Utilization, Addressing Risk Cases Particular to Generative AI Systems)

[Outline]

This guideline aims to boost the use and secure risk management of generative AI in the Japanese Government, by preparing propelling measures and setting proper rules for the Japanese Government's governance, procurement, and utilization of generative AI.

Revision History

Date of Revision	Revised Section	Details of Revision
May 27, 2025	-	First Edition
June 12, 2026	1.1	Added descriptions regarding the decisions on the “Artificial Intelligence Basic Plan” and the “Guideline for Ensuring the Appropriateness of Research & Development and Utilization of Artificial Intelligence-Related Technologies”
	1.3	Revised the definition of “Generative AI System” in Table 1 and added definitions of “Generative AI Model” and “Training”
	2.1	Added descriptions based on the “Guideline for Ensuring the Appropriateness of Research & Development and Utilization of Artificial Intelligence-Related Technologies”
	2.2.2	- Revised descriptions in line with the expansion of generative AI targeted by this guideline - Added descriptions on how the terms “generative AI system” and “generative AI model” are used in this guideline - Added a footnote on the definition of AI agents
	2.2.3	Organized the relationships among relevant actors
	2.2.4	Moved “2.2.4 Effective Date of this Guideline” to the Supplementary Provisions
	3.2	- Added a description stating that the CAIO determines the risk level of use cases, taking into account consultations with the AI Consultation Desk and the Advanced AI Utilization Advisory Board, etc. - Revised descriptions in line with the review of the high-risk judgment criteria
	4.1.1	Added descriptions on alerts to CAIOs
	5.1	- Added examples of benefits - Deleted Table 5, “Examples of Benefits Expected from Government Utilization of AI”
	5.2	- Added examples in light of the expansion of generative AI targeted by this guideline - Deleted Table 6, “Examples of Risks in AI Guidelines for Business”
	6.1.1	- Added descriptions published on the ISMAP Portal to a footnote - Added descriptions regarding relevant guidelines, etc. on measures

Date of Revision	Revised Section	Details of Revision
		related to intellectual property rights, etc. Incorporated content that can be generally referred to for ensuring security
	6.2.2	Added descriptions related to system audits
	6.3.1	- Added descriptions on authority control for protecting confidential information and on log retrieval taking into account the characteristics of generative AI systems - Added a description stating that the section concerning generative AI should be referred to when providing administrative information and functions through websites or other means - Added a description stating that usability should be considered
	6.3.2	- Deleted detailed explanations of the Procurement Check Sheet and the Contract Check Sheet, or moved them to footnotes - Added content necessary for enhancing controllability
	6.3.3	- Added a description stating that, particularly in cases of use outside ministries or agencies by a large, unspecified number of external users, such as the general public, appropriate terms of use, etc. should be established and individual consent should be obtained - Added descriptions to promote proper use in cases of generative AI systems that enable Users to create AI agents or similar AI capable of executing advanced tasks
	6.5	- Added considerations for major updates to generative AI models and large-scale additional training - Added descriptions on presenting terms of use to Users and providing information on mechanisms to prevent infringement, etc. of intellectual property rights, etc. - Added descriptions regarding the operation of access control functions - Added a description stating that reasonable measures, such as corrective measures, should be taken after recognizing infringement of rights, etc. - Added descriptions requiring reports from Users when, in generative AI systems that enable Users to create AI agents or similar AI capable of executing advanced tasks, Users create AI that execute tasks without prior User judgment on the appropriateness of output

Date of Revision	Revised Section	Details of Revision
		results
	6.7	• Added examples of risk cases subject to reporting
	7	• Simplified descriptions
	Supplementary Provisions	• Moved “2.2.4 Effective Date of this Guideline” and updated its descriptions

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1 Introduction

1.1 Background

AI-related technologies are developed day by day, with their utilization rapidly advanced in both public and private sectors in ways that foster innovation in industry and address social issues.

Under these circumstances, the G7 Summit was held in Japan in 2023 aiming to promote safe, secure, and trustworthy AI. The G7 Summit, chaired by Japan, concluded “The Hiroshima Process International Guiding Principles for Organizations Developing Advanced AI System”,¹ “The Hiroshima Process International Code of Conduct for Organizations Developing Advanced AI Systems”² and “The Hiroshima Process International Guiding Principles for All AI Actors”.³ AI governance is actively discussed in multinational frameworks such as the United Nations, the Council of Europe and the OECD. Furthermore, government bodies in various countries are also actively promoting the use of AI, while managing potential risks and setting rules to ensure proper AI governance across government operations.

To respond promptly and flexibly to social changes by embracing the use of new technologies, the Japanese Government has been taking measures to promote the safe and secure use of AI. This includes the publication of the AI Guidelines for Business Ver 1.2 (by the Ministry of Internal Affairs and Communications; Ministry of Economy, Trade and Industry on March 31, 2026. Hereinafter referred to as the AI Guidelines for Business),⁴ which aims to support voluntary efforts by businesses and other entities, the Act on Promotion of Research and Development, and Utilization of AI-related Technology (Act No. 53 of 2025),⁵ the Artificial Intelligence Basic Plan based on the AI Act (approved by the Cabinet on December 23, 2025),⁶ and the Guideline for Ensuring the Appropriateness of Research & Development and Utilization of Artificial Intelligence-Related Technologies based on the AI Act (decided by the AI Strategic

¹ Hiroshima Process International Guiding Principles for Organizations Developing Advanced AI System
<https://www.mofa.go.jp/files/100573471.pdf>

² Hiroshima Process International Code of Conduct for Organizations Developing Advanced AI Systems
<https://www.mofa.go.jp/files/100573473.pdf>

³ Hiroshima Process International Guiding Principles for All AI Actors
https://www.soumu.go.jp/hiroshimaaiprocess/pdf/document03_en.pdf

⁴ AI Guidelines for Business Ver 1.2
https://www.soumu.go.jp/main_content/001064305.pdf
https://www.meti.go.jp/shingikai/mono_info_service/ai_shakai_jisso/pdf/20260331_12.pdf

⁵ Act on Promotion of Research and Development, and Utilization of AI-related Technology
<https://laws.e-gov.go.jp/law/507AC0000000053> (Japanese version)
https://www8.cao.go.jp/cstp/ai/ai_hou_gaiyou_en.pdf (English version of the overview)

⁶ Artificial Intelligence Basic Plan
https://www8.cao.go.jp/cstp/ai/ai_plan/aipplan_eng_20260116.pdf

Headquarters on December 19, 2025; hereinafter referred to as the AI Guideline).⁷

The Priority Plan for the Advancement of a Digital Society (approved by the Cabinet on June 21, 2024) stated that AI would create a virtuous circle to accelerate innovation and that it is necessary to manage various risks associated with AI, including generative AI, and to ensure a safe and secure environment. The plan also stated that rules serving as guardrails to ensure the safety and security of AI use are also necessary, for the sake of promoting innovation as well.⁸

Moreover, ministries and agencies are considering utilizations of generative AI in different tasks and works. The Digital Agency hosts AI Ideathons and Hackathons, which aim to solve administrative issues by using AI, and implements various projects to experiment generative AI system utilizations. Through these initiatives, use cases are discovered and verifications are carried out by trial environments, for achieving practical uses of AI across the government.

This guideline aims to boost uses and secure risk management of generative AI⁹ in the Japanese Government, by setting scheme for AI governance, framework for sharing best practices, and the considerations regarding risks associated with the procurement and utilization of generative AI within the government. This guideline also shows a scheme for totally enhancing functionality, quality, and cost-effectiveness of generative AI systems utilized by the government. This guideline is formulated for the uses by national government staffs, in a manner consistent and compatible with existing guidelines, including the AI Guideline, as well as the AI Guidelines for Business and the “Common Standards for Cybersecurity Measures for Government Agencies and Related Agencies,”¹⁰ while taking into consideration the regulatory trends of foreign governments in relation to AI.

1.2 Positioning of this Guideline

This guideline is positioned as one of the documents to be adhered to as a normative

⁷ Guideline for Ensuring the Appropriateness of Research & Development and Utilization of Artificial Intelligence-Related Technologies

https://www8.cao.go.jp/cstp/ai/ai_guideline/ai_gl_eng_20260116.pdf

⁸ Priority Plan for the Advancement of a Digital Society

<https://www.digital.go.jp/en/policies/priority-policy-program>

⁹ The generative AI targeted by this guideline is, in principle, generative AI capable of accepting text and audio as input and generating text, images, or audio as output. For more information, refer to Section 2.2.2 Targeted Generative AI.

¹⁰ Common Standards for Cybersecurity Measures for Government Agencies and Related Agencies

<https://www.cyber.go.jp/pdf/policy/general/kijyunr7-en.pdf>

standard within the Digital Society Promotion Standard Guidelines.¹¹

1.3 Definition of Terms

The terms in this guideline conform with the glossary of the standard guideline group unless otherwise specified in Table 1 and within this guideline.

Table 1: Definition of terms 1

Term	Meaning
Artificial Intelligence (AI)	An abstract concept, which includes AI systems (defined below) themselves or software or programs that perform machine learning. (Source: AI Guidelines for Business, P.9)
Generative AI	A general term representing AI developed from an AI model that can generate texts, images, programs, etc. (Source: AI Guidelines for Business, P.10)
AI System	A system (such as a machine, robot, and cloud system) that works at various levels of autonomy during the use process and incorporates a software element that has a learning function. (Source: AI Guidelines for Business, P.9)
Generative AI System	An AI system that incorporates generative AI as a component. (In accordance with AI Guidelines for Business, P.9)
AI Model	A model incorporated into an AI system and acquired through machine learning using training data. It produces prediction results in accordance with the input data. (In accordance with AI Guidelines for Business, P.10)
Generative AI Model	An AI model that can generate texts, images, programs, etc. (In accordance with AI Guidelines for Business, P.10)
Large Language Models (LLM)	A language model that treats the probability of occurrence of sentences and words as a deep-learning model and constructed using very large amounts of training data. (Source: Guidelines for Quality Assurance of AI-based Products and Services (Excerpt of the QA4AI Guidelines: Chapter on

¹¹ Digital Society Promotion Standard Guidelines
https://www.digital.go.jp/en/resources/standard_guidelines

Term	Meaning
	LLM and Conversational Generative AI) by Consortium of Quality Assurance for Artificial-Intelligence-based Products and Services, P.2-1) ¹²
AI Governance	The design and operation of technological, organizational, and social systems by stakeholders for the purpose of managing risks posed by the use of AI at levels acceptable to stakeholders and maximizing their positive impact (benefit). (Source: AI Guidelines for Business, P.10)
Training	Training is the process of determining or improving the parameters of an AI model using data, and consists of two processes: pre-training, which builds the foundation model, and post-training, which involves continuous parameter adjustments as needed. Training encompasses methods such as supervised learning, unsupervised learning, and reinforcement learning. The data used for training is divided into training data, validation data, and test data, which are used for the building and evaluation of AI models. (Source: AI Guidelines for Business, P.10)
Risk cases particular to generative AI	A condition where risks inherent to a generative AI system have materialized, or where signs or events indicating the potential for such risks are observed, which may have significant impacts. (For more information, see Section 6.7 Addressing Risk Cases Particular to Generative AI Systems)

¹² Guidelines for Quality Assurance of AI-based Products and Services (Excerpt of the QA4AI Guidelines: Chapter on LLM and Conversational Generative AI)
<https://www.qa4ai.jp/download/>

2 Purpose and Scope of this Guideline

2.1 Purpose of this Guideline

The “Social Principles of Human-Centric AI,” formulated by the Japanese Government in March 2019, set forth the three “Basic Philosophies”: (1) Dignity: A society that has respect for human dignity, (2) Diversity and Inclusion: A society where people with diverse backgrounds can pursue their own well-being, and (3) Sustainability: A sustainable society. The AI Guideline stipulates, as matters to be especially addressed by national governments: (1) promoting innovation through active and leading utilization of AI, (2) improving AI literacy throughout the entire society, (3) examining the appropriate approach of AI governance, and (4) fulfilling accountability as an administration.

This guideline aims to realize the “Basic Philosophies” of the “Social Principles of Human-Centric AI” and serves as a guardrail to boost the use of generative AI in the government, taking into account the matters to be especially addressed by national government under the AI Guideline. It aims to achieve steady evolution of safe and secure utilization of generative AI by the Japanese Government, thereby realizing benefits such as:

1. Efficient and effective achievement of administrative objectives
2. Enhanced planning capabilities
3. Enhanced information gathering and analysis capabilities
4. Enhanced quality of policies, documents, and analyses developed by the government
5. Improved function and convenience of existing government information systems using generative AI
6. Enhanced functionality, quality, and cost-effectiveness of the entire generative AI utilized by the government
7. Enhanced international competitiveness and the industrial development in Japan’s AI sector
8. Enhancement of AI safety and realization of international interoperability
9. Strengthened data governance within the government

2.2 Scope

2.2.1 Information Systems Targeted by this Guideline

This guideline applies to government information systems that incorporate as

components the generative AI specified in “2.2.2 Generative AI Covered by this Guideline.” However, this guideline does not apply to government information systems that handle specially designated secrets (as defined in Article 3, Paragraph 1 of the Act on the Protection of Specially Designated Secrets, Act No. 108 of 2013), critical economic security information (as defined in Article 3, Paragraph 1 of the Act on the Protection and Utilization of Critical Economic Security Information, Act No. 27 of 2024), or information requiring classification as confidential documents according to the Guidelines on the Management of Administrative Documents (determined by the Prime Minister; first edition published on April 1, 2011). Additionally, this guideline does not apply to government information systems handling confidential information related to national security, the maintenance of public safety and order, as well as information that may potentially become confidential.

Incorporated Administrative Agencies and Designated Corporations¹³ are also expected to follow this guideline when procuring and utilizing generative AI. Furthermore, local public entities are expected to refer to this guideline as needed.

2.2.2 Generative AI Targeted by this Guideline

The generative AI targeted by this guideline is, in principle, generative AI capable of accepting text and audio as input and generating text, images, or audio as output.

For generative AI systems that include such generative AI as components and accept images, videos, etc. as input, generate videos, etc., or are capable of performing more advanced tasks (such as AI agents¹⁴), specific measures to be addressed are not prescribed in light of the current status of utilization in the government. However, such systems are subject to the AI governance framework, specifically “4.1 Establishing Frameworks for Boosting Utilizations of AI and Strengthening and Promoting AI Governance,” “4.2 Development of AI Governance Frameworks within Each Ministry or Agency,” and “6.7 Addressing Risk Cases Particular to Generative AI Systems.” Hereinafter, the term “generative AI model” refers to a generative AI model that incorporates generative AI targeted by this guideline as a component, and the term “generative AI system” refers to a generative AI system that incorporates such a

¹³ Refers to “Designated Corporations,” as stipulated in Article 13 of the Basic Act on Cybersecurity (Act No. 104 of 2014)

¹⁴ In the AI Guidelines for Business, AI agents are defined as follows: “In these Guidelines, an AI agent refers to an AI system that perceives its environment and acts autonomously to achieve a specific goal.” (Source: AI Guidelines for Business, P.11) It is also stated in a footnote that the term “autonomy” does not refer solely to a highly autonomous state, but also includes systems with a certain degree of autonomy.

generative AI model as a component.

Additionally, in terms of other types of AI, including the above, this guideline may be revised as needed, considering the future situation of utilizations within the government and the status of domestic and international rule developments, etc.¹⁵

2.2.3 Intended Audience of this Guideline

This guideline is intended for national government staff involved in the procurement and utilization of generative AI. The types of staff assumed as readers are categorized in Table 2.

Table 2 Types of Intended Users of this Guideline ¹⁶

Types of Staff	Description	Specific Examples of the Staff
Chief AI Officer (CAIO)	A person responsible for formulating and promoting policies for the utilization of generative AI for the evolution and innovation of public administration in ministries and agencies, overseeing the utilization status and risk management within the entire organization.	Officials equivalent of Chief Information Officer or Deputy Chief Information Officer.
Planners	Individuals who plan the utilization of new generative AI, define what the operational tasks require for generative AI systems, and promote procurement, development, and utilization of them.	Government staff in departments or teams responsible for planning and procuring the utilization of generative AI for operational tasks (e.g., staff responsible for departments overseeing generative AI systems, staffs in departments planning

¹⁵ For the use of AI systems and services not covered by this guideline, it is desirable for each ministry or agency to refer to this guideline (noting that this guideline has been written with generative AI as its primary focus), the AI Guidelines for Business (which cover AI in general), etc., and then implement appropriate risk countermeasures, etc., and promote their utilization.

¹⁶ For systems provided by the Digital Agency as common features, the roles of Planners, Providers, and Users may extend across both the Digital Agency and other ministries and agencies. However, in this case, it is necessary to clearly define the boundaries of responsibility and ensure that all parties collaborate in implementing risk management measures.

Types of Staff	Description	Specific Examples of the Staff
		and procuring generative AI systems, PJMO staff, etc.).
Developers	Individuals who construct generative AI systems, including the model, system infrastructure, and input/output functions of generative AI, by developing generative AI models and algorithms, collecting data (including purchases), preprocessing, and training/verifying AI models in accordance with the plan.	(In cases where development is conducted internally) Government staff responsible for developing the generative AI systems mentioned on the left (including PJMO staff).
Providers	Individuals who provide services to the government or the public by incorporating generative AI models into applications, products, existing systems, or administrative utilization processes.	Government staff responsible for operating generative AI systems utilized by government staff or the public (including PJMO staff).
Users ¹⁷	Individuals using generative AI systems within public administrations.	Government staff using generative AI systems in general administrative tasks and various public administration fields.

Table 3 Terminology Comparison between this Guideline and the AI Guidelines for Business¹⁸

Guidelines	AI Guidelines for Business
Chief AI Officer (CAIO)	Business Executive Officers, including Executives

¹⁷ Even though this guideline is not directly applied to the Users, they are required to comply with the rules related to generative AI utilization formulated by the Chief AI Officer (CAIO) and the utilization rules for each generative AI system formulated by Planners, taking this guideline into account. (For more details, refer to "6.6 Matters to be Addressed by Users of Generative AI Systems in Government")

¹⁸ Because this guideline is intended for national government uses and the AI Guidelines for Business mainly targets the private sector, meanings of these corresponding words are not always exactly the same.

Guidelines	AI Guidelines for Business
Planners	AI Developers or AI Providers
Developers	AI Developers or AI Providers
Providers	AI Providers ¹⁹
Users	AI Business Users

*Businesses that provide generative AI systems to the government under contracts are not directly subject to this guideline. Instead, government staff acting as Planners and Providers are required to ensure compliance with this guideline and actions based on it throughout procurement procedures, contracts with these businesses, supervision of contracted businesses, and cooperation with generative AI system Providers.

¹⁹ In the AI Guidelines for Business, AI developers are also considered to be responsible for maintaining and improving AI model performance, etc. after AI systems begin to be provided.

3 Policy for the Government's Utilization of Generative AI

3.1 Government Policy for utilizations of Generative AI

Utilizations of generative AI in the government involve risks such as information leakages and generation of inappropriate expressions. On the other hand, utilizations of generative AI have potentials of realizing efficiency and sophistication of various administrative tasks and procedures, which can significantly advance the evolution and innovation of public administration, including reforms of work style and improvements in public services. Furthermore, it is crucial for the government to take the lead in utilizing AI in order to promote its safe and secure uses across society and enhance international competitiveness of Japan's AI industry.

To this end, each ministry or agency shall actively consider integrating generative AI into their operations while undertaking the following measures:

- (1) Each ministry or agency shall work to strengthen AI governance by such means as establishing a framework for the control and supervision of AI systems, for example, by appointing a Chief AI Officer (CAIO).

⇒ Refer to “4. Boosting the Use of AI and Establishing Structures for Strengthening and Promoting AI Governance.”

- (2) All individuals involved in the procurement and utilization of generative AI within each ministry or agency shall understand both the benefits and risks of generative AI.

⇒ Refer to “5. Boosting the Use of Generative AI with an Understanding of Benefits and Risks.”

- (3) Individuals involved in the procurement and utilization of generative AI within each ministry or agency shall understand measures for mitigating the risks associated with generative AI. They should implement appropriate risk countermeasures and enhance the effectiveness of generative AI utilizations by improving the quality of generative AI systems and optimizing methods of utilizing them.

⇒ Refer to “6. Government Rules for the Procurement and Utilization of Generative AI.”

When undertaking the above measures, in order to steadily promote the utilization of generative AI throughout the government, firstly, each ministry or agency shall swiftly implement generative AI utilizations in areas considered to have lower risk, such as internal administrative tasks.

Secondly, even for generative AI utilizations that may pose relatively high risks (refer to “3.2 Approach to High-Risk Generative AI Utilization”), initiatives that contribute to the evolution and innovation of public administration shall be supported in ways that such generative AI utilizations are realized in as safe and effective as possible manner by taking appropriate risk countermeasures.

To this end, each ministry or agency shall proactively promote the utilization of generative AI in ways that contribute to the evolution and innovation of public administration, while conducting risk assessments tailored to specific use cases. Regarding generative AI utilization that are likely to pose high risks, they shall report the content of projects, risk mitigation measures, and quality assurance plans to the “Advanced AI Utilization Advisory Board.” The “Advanced AI Utilization Advisory Board” will provide advice considering status of best practices in AI utilizations in the public and private sectors, best practices in government AI utilization in Japan and abroad, development of rules, and establishment of evaluation methods for generative AI systems.

Furthermore, each ministry or agency shall make efforts to identify utilization methods that contribute to the evolution and innovation of public administration and improve the functionality, quality, and cost-effectiveness of the entire generative AI system they use within each ministry or agency. As necessary, they shall effectively leverage the functions of the aforementioned “Advanced AI Utilization Advisory Board” and the “AI Consultation Desk,” which will be mentioned later.

3.2 Approach to High-Risk Generative AI Utilization

The Chief AI Officer (CAIO) of each ministry or agency shall conduct risk assessments tailored to specific use cases in collaboration with Planners and appropriately determine the risk classification (including whether the cases are likely to be high-risk).

When determining risk classification, the Chief AI Officer (CAIO) of each ministry or agency shall make the decision in collaboration with Planners, while also referring to the results of “[Appendix 1] High-Risk AI Project Finder” (hereinafter referred to as the “High-Risk AI Project Finder”).²⁰ The High-Risk AI Project Finder indicates the risk

²⁰ The “High-Risk AI Project Finder” is a tool that makes it possible, simply by answering questions concerning the three risk axes shown in Table 4, to make a simplified decision as to whether a project is likely or unlikely to be classified as high-risk.

classification aligned with the risk axes presented in Table 4.

In cases where it is determined that a utilization case of generative AI system is likely to be classified as high-risk, the Chief AI Officer (CAIO) should report the case to the “Advanced AI Utilization Advisory Board.” (*Even if it is determined that a utilization case is not likely to be classified as high-risk, consultation with the AI Consultation Desk or the Advanced AI Utilization Advisory Board is possible, as necessary)

Taking into account consultations with the AI Consultation Desk or the Advanced AI Utilization Advisory Board, the Chief AI Officer (CAIO) shall determine the risk classification of the use case.

Table 4: Risk Axes and Approach

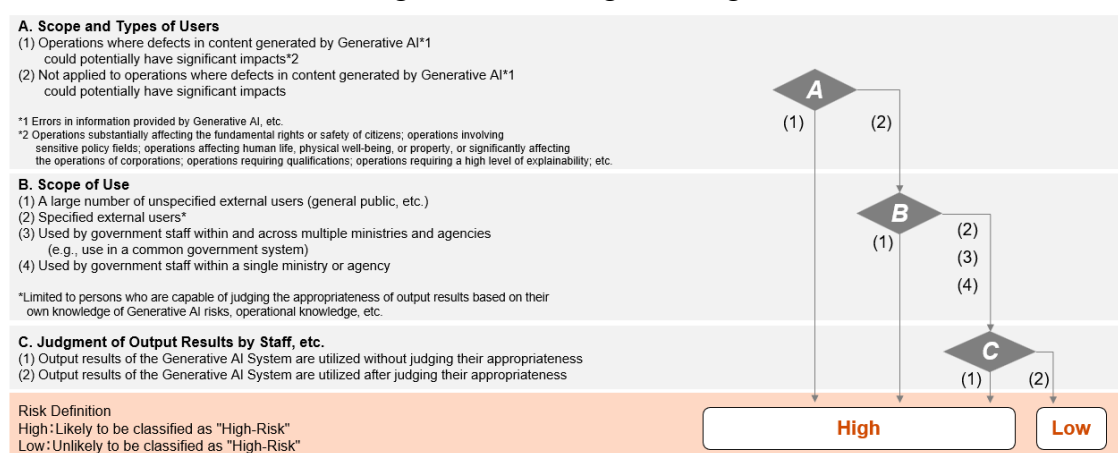
Risk Axes	Description	Viewpoints
A: Characteristics of operations using generative AI	Risks are considered to be higher when Generative AI is utilized in operations where defects in content generated by Generative AI, such as errors in information provided by Generative AI, could potentially have significant impacts. Such operations include operations substantially affecting the fundamental rights or safety of citizens; operations involving sensitive policy fields; operations affecting human life, physical well-being, or property, or significantly affecting the operations of corporations; operations requiring qualifications; operations requiring a high level of explainability; etc.	(1) Utilized in operations where defects in content generated by Generative AI could potentially have significant impacts. (2) Not utilized in operations where defects in content generated by Generative AI could potentially have significant impacts.
B: Scope and types of users	The degree of risk and the scope of its impact vary depending on the scope of users, etc. of the generative AI system. In particular, services utilized by a large number of unspecified external users, such as the general public, are	(1) Utilization by a large number of unspecified external users, such as the general public.

Risk Axes	Description	Viewpoints
	considered to pose higher risks than utilization within ministries and agencies by government staff. In addition, even in cases involving government staff or specified external users, such as local public entities or private companies, the risk is not necessarily considered high if such users are considered capable of judging the appropriateness of output results based on their own knowledge of Generative AI risks, operational knowledge, etc.	(2) Utilization by specified external users. * (3) Utilization by government staff within and across multiple ministries and agencies, such as utilization in a common government system. (4) Utilization by government staff within a single ministry or agency. *Limited to persons who are capable of judging the appropriateness of output results based on their own knowledge of Generative AI risks, operational knowledge, etc.
C: Utilization involving the judgment by government staff, etc. on output results	The output results of generative AI are not always accurate. Therefore, risks are considered to be higher when the operation is designed to utilize generative AI system without involving judgment by government staff, etc. on the output results.	(1) Output results of the generative AI system are utilized without government staff, etc. judge their appropriateness. (2) Output results of the generative AI system are utilized after government staff,

Risk Axes	Description	Viewpoints
		etc. judge their appropriateness.

The High-Risk AI Project Finder is configured so that, based on the responses provided, high-risk judgment is conducted in accordance with the following flow. See “Figure 1: Risk Judgment Logic.”

Figure 1: Risk Judgment Logic



*Examples of Risk Judgment

In practice, it is important not merely to apply the risk axes in Table 4 in a formalistic manner, but to determine the risk classification comprehensively, also taking into account the specific manner in which the generative AI system is used. For example, this may include whether, as a premise for C(2), the sources of generated content can be easily referenced.

- (Example 1) A case where errors in content generated by Generative AI affect the outcome of an administrative procedure and have a significant impact, such as the suspension of a corporation’s business activities.
 < A(1)→ Potentially high-risk >
- (Example 2) A case where an individual registered on a website is guided to a specific procedure page after narrowing down relevant administrative services, etc. matching the individual’s needs through a search and summarization service using Generative AI.
 < A(2) → B(2) → C(2) → unlikely to be classified as high-risk>

(Example 3) A case where reply emails are created according to the content of the recipient's email and are automatically sent without confirmation by government staff, etc.

<A(2) → B(4) → C(1) → likely to be classified as high-risk>

4 Establishing Frameworks for Boosting Utilizations of AI and Strengthening and Promoting AI Governance

4.1 Establishing Frameworks across the Government for Boosting AI Utilization and AI Governance

4.1.1 Holding the Advanced AI Utilization Advisory Board and Operating the AI Consultation Desk

To effectively and safely promote generative AI projects across the government, the “Advanced AI Utilization Advisory Board,” will be held, consisting of experts with advanced knowledge of AI rules, utilizations, risk management, and cybersecurity (assumingly including both private sector and government experts). The Digital Agency will operate the secretariat office.

The “Advanced AI Utilization Advisory Board” will be also participated by the Digital Agency and the AI Safety Institute (AISi) as board and secretariat members to operate effectively, leveraging their expertise and capabilities.

“The Advanced AI Utilization Advisory Board” will have the following roles:

- Recognizing the procurement and utilization status of generative AI in each ministry or agency
- Providing advice on evaluation and risk mitigation related to the procurement and utilization of generative AI systems by each ministry or agency, which are highly likely to be classified as high-risk
- Identifying and disseminating best practices for the procurement and utilization of generative AI in each ministry or agency
- Providing advice for identifying risk cases particular to generative AI systems in each ministry or agency and preventing their recurrence
- Providing advice on the effective utilization of generative AI in each ministry or agency, as well as on the improvement of functionality, quality, and cost-effectiveness of generative AI systems. This advice also includes listing and introducing experts and government staff with advanced knowledge and extensive experience of AI utilization
- Considering revisions of this guideline

The “Advanced AI Utilization Advisory Board” will review the guideline in collaboration with relevant ministries and agencies, considering the overall trends in generative AI policies across the government as well as the operational status of this

guideline. The Digital Agency shall convene the "Council of Chief AI Officers (CAIO)" as a liaison meeting for relevant ministries and agencies, provide briefings on discussions from the "Advanced AI Utilization Advisory Board," and offer necessary information on the utilization and governance status of generative AI systems in each ministry or agency, as well as alerts and other information regarding generative AI systems.

Moreover, the Digital Agency will operate an "AI Consultation Desk," accepting questions and consultations from ministries and agencies regarding the procurement and utilization of generative AI and the operation of this guideline.

The "AI Consultation Desk" will receive inquiries and consultations from ministries and agencies in the government and provide necessary support and advice from technical and professional perspectives to promptly realize effective utilizations of generative AI, including:

- Inquiries regarding the content of the guideline
- Consultations on methods and technical aspects for improving the efficiency of administrative tasks and enhancing administrative services by utilizing generative AI
- Consultations on cases where it is unclear whether a generative AI system will be classified as high-risk
- Other consultations on points to consider for risk reduction in the planning and procurement of generative AI systems

Furthermore, the Digital Agency will establish a scheme where AI experts and responsible staff of the Digital Agency as necessary collaborate with information technology specialists dispatched by the Digital Agency to ministries and agencies, in providing support for the utilization of generative AI in projects conducted by each ministry or agency.

4.1.2 Checks under the Control and Supervision by the Digital Agency

In accordance with Article 4, Paragraph 2, Item 17 of the Act on the Establishment of the Digital Agency (Act No. 36 of 2021), the Digital Agency, as part of its control and supervision (centralized project management role), which is to oversee the development and management of national information systems, shall check the planned implementation of generative AI systems and the status of risk management measures for these systems within each ministry or agency. This information will be shared properly with the "Advanced AI Utilization Advisory Board."

4.2 Development of AI Governance Frameworks within Each Ministry or Agency

4.2.1 Appointment of Chief AI Officers (CAIO) in Each Ministry or Agency

Each ministry or agency shall establish schemes for the control and supervision of generative AI systems throughout their lifecycle, including checks on procurements and contracts based on this guideline.

Specifically, each ministry or agency shall appoint a Chief AI Officer (CAIO) to centrally manage generative AI systems in terms of planning, handling of administrative data, procurement, utilization, and operation, as well as risk cases particular to generative AI, enabling initiatives related to the proper procurement and utilization of generative AI.

The Chief AI Officer (CAIO) shall proactively promote the utilization of generative AI in the operations of each ministry or agency. Serving as a central authority for establishment and implementation of AI governance within each ministry or agency, the CAIO shall monitor generative AI systems, ensure comprehensive risk management, handle risk cases particular to generative AI systems, conduct trainings to enhance AI literacy among government staff, and decide whether reports to the Advisory Board are necessary.

The Chief AI Officer (CAIO) shall assume the AI-related roles, within the duties of the Chief Information Officer responsible for the comprehensive and strategic digitalization promotion of public administration in the organization. Thus, it is expected that the Chief AI Officer (CAIO) will be a government staff of the level equivalent to the "Chief Information Officer" or the "Deputy Chief Information Officer" assisting the Chief Information Officer within each ministry or agency.²¹

4.2.2 Report to the Advanced AI Utilization Advisory Board

The Chief AI Officer (CAIO) of each ministry or agency shall compile an ongoing comprehensive overview list of the operational status and the utilization status of generative AI systems within each ministry or agency. They shall report on this status list to the "Advanced AI Utilization Advisory Board" on a regular basis, approximately once per quarter.

Moreover, in collaboration with Planners, the Chief AI Officer (CAIO) of each ministry or agency shall conduct appropriate risk assessments during the planning of generative AI utilization projects, as outlined in "3 Government Policy for the Use of

²¹ The Chief AI Officer (CAIO) may also be concurrently held by the "Chief Digital Officer" or "Deputy Chief Digital Officer" in each ministry or agency.

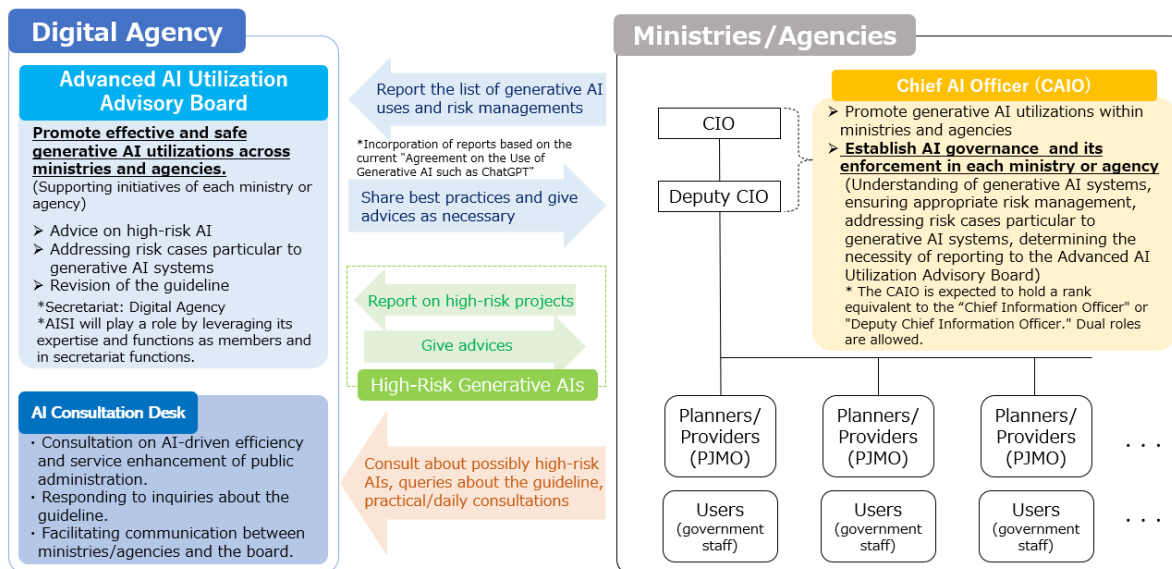
Generative AI." For generative AI systems that are likely to be classified as high-risk, the Chief AI Officer (CAIO) shall report the project's details, objectives, risk mitigation measures, and quality assurance plans during operation etc., to the Advanced AI Utilization Advisory Board.

Furthermore, not only during project planning but also throughout development, release, and post-launch, if there is a possibility that the project may be classified as high-risk due to changes in circumstances, or if the use of generative AI was not recognized at the time of planning but is recognized at the time of release or post-development and is found carrying a potential high-risk classification, the said report shall be made to the Advanced AI Utilization Advisory Board accordingly.

The determination of whether the utilization of the generative AI system falls under high-risk shall be based on risk assessment is made by each ministry or agency, with the Chief AI Officer (CAIO) having the final decision-making authority. However, if requested by the Advanced AI Utilization Advisory Board, each ministry or agency should provide necessary reports on the relevant project. (Refer to Figure 4: Overview of the Government's Framework Related to AI Procurement and Utilization.²²)

²² In cases where information security is anticipated to be involved in risk assessment of generative AI systems, collaboration with the Chief Information Security Officer (CISO) will be undertaken as needed to determine whether the generative AI poses a high-risk.

Figure 2: Overview of the Government's Framework Related to AI Procurement and Utilization



5 Boosting the Use of Generative AI with an Understanding of Benefits and Risks

5.1 Benefits of Generative AI

AI Guidelines for Business outline the benefits of AI utilization as follows.

There are a variety of benefits from AI use, and they have been enhancing as technologies are advanced.

AI business actors can use AI to create value. The following can be expected as an example:

- Reduction of operation costs
- Creation of new products and services that accelerate innovation in existing business
- Renovation of organization
- Expansion of services into temporal and geographical areas where it is difficult for humans to respond

Furthermore, it is conceivable that AI is applied to various fields (agriculture, education, healthcare, manufacturing, transportation, etc.) and various deployment models (cloud service, on-premise system, cyber-physical system, etc.) are used.

In the government sector, benefits are expected from the utilization of generative AI, and these benefits are expected to expand further as generative AI advances rapidly.

Each ministry or agency should understand these benefits and proactively incorporate generative AI into their operations moving forward.

Additionally, to accelerate the utilization within the government, the Digital Agency will work with other ministries and agencies to conduct technical trials envisioning actual use cases and promote the creation of use cases through initiatives such as "AI Ideathon and Hackathon," etc.

5.2 Risks Associated with Generative AI

AI Guidelines for Business provide examples of technical risks, societal risks, etc. as general risks of AI.

In the procurement and utilization of generative AI within the government, it is necessary to be mindful of such risks. For example, the following risks should also be taken into consideration:

- The risk of generating information or expressions that deviate from political neutrality and appropriateness, when using generative AI in policy-related tasks
- The risk of increased costs and the risk of bias becoming entrenched due to reliance on a single model
- The risk of making incorrect or counter-national statements by directly utilizing the output of generative AI that does not sufficiently consider the language, culture and historical background
- The risk of utilizing generative AI in operations, leading to the reasoning of administrative decisions being unclear or untraceable, thereby failing to fulfill accountability to the public regarding administrative processes
- The risk of increased unnecessary costs due to vendor lock-in
- The risk of spreading illegal or harmful information due to incorrect responses when using generative AI for legally binding translations or inquiries
- The risk of using output results, such as images, that contain elements similar to existing copyrighted works without noticing such similarity
- The risk of an audio response function unintentionally resembling the voice quality or speaking style of a well-known individual

Each ministry or agency must advance the utilization and risk management of generative AI at the same time, being mindful not only of the benefits but also of these risks.

6 Government Rules for the Procurement and Utilization of Generative AI

6.1 Overview of Measures to be Addressed for Procurement and Utilization of Generative AI in the Government

6.1.1 Measures to be Addressed Based on Various Laws, Regulations, and Guidelines

- (1) In the procurement and utilization of generative AI, it is required to comply with laws, regulations and guidelines related to the government information systems such as "Digital Society Promotion Standard Guidelines," "Common Standards for Cybersecurity Measures for Government Agencies and Related Agencies," "Agreement on the Procurement Policy and Procedures for Goods and Services of the Government Regarding IT Procurement," and "Guidelines on the Act on the Protection of Personal Information (For Administrative Organs, etc.)"
- (2) Regarding generative AI systems targeted by this guideline, when procuring cloud services that deal with confidential information, it is required to adhere to the utilization principles of the Information System Security Management and Assessment Program (ISMAP). Selections must be made in principle from the ISMAP Cloud Service List, etc.,²³ and measures specified in this guideline must be implemented separately. In other words, since measures required to address risks particular to generative AI systems need to be taken in accordance with this guideline, it is important to note that even if a service is selected from the ISMAP Cloud Service List, etc., compliance with this guideline is still required.
- (3) When utilizing cloud-service based generative AI systems in operations, which are offered to a large, unspecified number of users²⁴ and accessible merely by agreeing to standard terms and conditions or rules, etc., it is in principle prohibited to deal with confidential information. Even if confidential information is not handled, it is necessary to take risks into consideration and determine an available

²³ Where a cloud service provider receives a generative AI model from a generative AI model provider and provides a generative AI service on its own generative AI development platform that applies security management functions to data handled by such model (equivalent to PaaS), the following shall apply.

Where the cloud service provider registers such generative AI development platform on ISMAP with the platform included in the scope of statement, the security of the data handled by the generative AI service shall, in principle, be deemed to satisfy the ISMAP security requirements. In this case, where the cloud service provider registers on ISMAP by including the generative AI development platform within the scope of statement, it shall not be required to include each individual generative AI model provided on the platform within the scope of statement. In addition, such generative AI models shall not be required to be registered on ISMAP.

²⁴ In this description, the term "users" is used in its general sense and is not limited to the "Users" described in "Table 2: Types of Intended Users of this Guideline" in "2.2.3 Intended Audience of this Guideline."

scope of operations in advance. For individual uses, adherence to the usage procedures is required, whereby the approver²⁵ must assess the application details from the Planner regarding the purpose of use (operation details) and the scope of users,²⁶ then subsequently determine the permissibility of the uses. Additionally, it is essential to supervise the usage status.²⁷

- (4) For operational uses of generative AI in the government agencies, taking into account the "Alert Regarding the Operational Use of Generative AI such as DeepSeek" (Secretariat for the Meeting for the Promotion of a Digital Society Executive Committee, February 6, 2025),²⁸ it is essential to fully recognize the potential risks (*) associated with service uses, even when procurement actions are not involved. It is also necessary to seek advice from the National Cybersecurity Office, to make an appropriate judgment, considering the intent of the "Agreement on the Procurement Policy and Procedures for Goods and Services of the Government Related to IT Procurement."

*For example, if server equipment is located overseas, local laws and regulations may apply, and data may be censored or seized by the local governments and authorities.

- (5) Government staff involved in the procurement and utilization of generative AI must undertake initiatives based on the "AI Guidelines for Business, Part 2, C. Common Guiding Principles."

Table 5: Overview of the AI Guidelines for Business "Part 2, C. Common Guiding Principles"

1. Human-centric	(1) Human dignity and autonomy of individuals
	(2) Paying attention to manipulations by AI on decision-making and emotions
	(3) Countermeasures against disinformation, etc.
	(4) Ensuring diversity/inclusion
	(5) Providing user support

²⁵ The official who reviews and approves applications for exceptional measures.

²⁶ In this description, the term "users" is used in its general sense and is not limited to the "Users" described in "Table 2: Types of Intended Users of this Guideline" in "2.2.3 Intended Audience of this Guideline."

²⁷ The "Agreement on the Operational Use of Generative AI such as ChatGPT (Version 2.1)" has been abolished, and initiatives are to be implemented by applying this Guideline.

²⁸ Alert Regarding the Operational Use of Generative AI such as DeepSeek
https://www.digital.go.jp/assets/contents/node/basic_page/field_ref_resources/d2a5bbd2-ae8f-450c-adaa-33979181d26a/e7bfeba7/20250206_councils_social-promotion-executive_outline_01.pdf

	(6) Ensuring sustainability
2. Safety	(1) Taking into consideration the lives, bodies, properties and minds of humans and the environment
	(2) Proper use (of AI)
	(3) Proper training
3. Fairness	(1) Consideration for bias in technologies forming AI models
	(2) Intervention by decisions made by humans
4. Privacy protection	(1) Protection of privacy across AI systems and services in general
5. Ensuring security	(1) Security measures relevant to AI systems and services
	(2) Consideration for the latest trends
6. Transparency	(1) Ensuring verifiability
	(2) Providing relevant stakeholders with information
	(3) Reasonable and truthful support
	(4) Improving explainability and interpretability for relevant stakeholders
7. Accountability	(1) Improving traceability
	(2) Explaining conformity to common guiding principles
	(3) Designation of responsible persons
	(4) Sharing responsibilities among actors
	(5) Specific actions for stakeholders
	(6) Documentation
8. Education/literacy	(1) Ensuring AI literacy
	(2) Education and reskilling
	(3) Support for stakeholders
9. Ensuring fair competition	-
10. Innovation	(1) Promoting open innovation, etc.
	(2) Consideration for interconnectivity and interoperability
	(3) Providing information appropriately

- (6) When procuring and utilizing Generative AI, it is necessary to take into account measures against risks relating to Intellectual property rights, etc. This Guideline has been prepared based on examples of measures set out in the “Guidebook on the Utilization of Generative AI for Content Production” issued by the Ministry of Economy, Trade and Industry on July 5, 2024, and the “Checklist & Guidance on AI and Copyright” issued by the Copyright Division of the Agency for Cultural Affairs on July 31, 2024. If it is necessary to confirm details, these materials should

be referred to, and appropriate decisions be made in connection with procurement and utilization.

- (7) From the perspective of ensuring security, the “Guidelines on Technical Measures to Ensure the Security of AI”²⁹ (issued by the Ministry of Internal Affairs and Communications) present examples of technical measures for LLMs and AI systems that incorporate LLMs as components. These examples of measures address threats to maintaining a state in which confidential information is not leaked through unauthorized manipulation, and unintended changes to or suspension of AI systems do not occur. Given the nature of AI, it is difficult to eliminate the factors that give rise to such threats. It may also be difficult to eliminate those factors by implementing a single measure alone. Based on these premises, Planners, Developers, and Providers must each implement appropriate risk countermeasures and reduce risks, including by taking multiple measures wherever possible, while also referring to the examples of technical measures presented in the guidelines. Table 6 provides an overview of the main countermeasures against direct prompt injection attacks, indirect prompt injection attacks, and DoS attacks (denial-of-service attacks) presented in the guidelines. In addition, [Appendix 3] Procurement Check Sheet (for Generative AI Systems) includes examples of measures from the evaluation perspective of ensuring security, while also considering the examples of technical measures presented in the guidelines.

Table 6: Guidelines on Technical Measures to Ensure the Security of AI “Main Countermeasures against Prompt Injection Attacks and DoS Attacks (Denial-of-Service Attacks) (Overview)”³⁰³¹

	Countermeasures to be taken by AI	Countermeasures to be taken by AI providers
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²⁹ “Guidelines on Technical Measures to Ensure the Security of AI” (Japanese Version)
https://www.soumu.go.jp/menu_news/s-news/01cyber01_02000001_00282.html

³⁰ A prompt injection attack refers to an attack that causes a generative AI model to generate unauthorized outputs by providing manipulated input to the generative AI model. In these guidelines, an attack conducted by inputting a manipulated prompt into a generative AI model is referred to as a direct prompt injection attack, while an attack conducted by causing a generative AI model to refer to manipulated data is referred to as an indirect prompt injection attack. A DoS attack (denial-of-service attack) refers to an attack in which prompt input that requires an AI system to perform an enormous amount of processing is provided to a generative AI model, thereby placing a computational load on the AI system or causing economic losses beyond anticipated levels, delaying or stopping the AI system’s responses, or impairing service continuity.

³¹ Table 6 provides an overview of the main countermeasures against each type of attack and is not intended to be exhaustive. Blank cells do not indicate that no countermeasures exist. Furthermore, each countermeasure may take different forms depending on the type of attack and other relevant factors.

	developers					
	Improving resistance to unauthorized instructions through training on safety criteria, etc.	Improving resistance to unauthorized instructions through system prompts	Verification of inputs, outputs, and externally referenced data through guardrails, etc.			Access control for orchestrators, RAG, etc. ³²
			Verification of prompt inputs	Verification of externally referenced data	Verification of outputs	
Direct prompt injection attacks	○	○	○		○	○
Indirect prompt injection attacks	○	○	○	○	○	○
DoS attacks (denial-of-service attacks)	○	○	○			

6.1.2 Measures to be Addressed Based on this Guideline

- (1) The government staff involved in the procurement and utilization of generative AI shall take appropriate measures for "6.2 Measures to be Addressed by Chief AI Officers (CAIO) of Generative AI Systems in the Government," "6.3 Measures to be Addressed by Planners of Generative AI Systems in the Government," "6.4 Measures to be Addressed by Developers of Generative AI Systems in the Government," "6.5 Measures to be Addressed by Providers of Generative AI Systems in the Government," "6.6 Measures to be Addressed by

³² An abbreviation for Retrieval-Augmented Generation. A method that allows LLM to generate answers on the basis of knowledge acquired from external databases so that answers can be given in line with knowledge and knowledge can be augmented without fine-tuning. (Source: Guidelines for Quality Assurance of AI-based Products and Services (Excerpt of the QA4AI Guidelines: Chapter on LLM and Conversational Generative AI) by Consortium of Quality Assurance for Artificial-Intelligence-based Products and Services, P.2-2)

Users of Generative AI Systems in the Government," And "6.7 Addressing Risk Cases Particular to Generative AI Systems" as stipulated in this guideline, respectively.

- (2) However, various patterns can be anticipated in the implementation of generative AI systems. For instance, when classifying the implementations based on "whether individual development is conducted" and "what type of contract is made," the following categorization can be a basis for applying this guideline to cases:

Type A: The generative AI system is used without conducting individual development, by agreeing to standard terms and conditions or rules, etc. (In principle, it is assumed that confidential information is not handled.)

Type B: The generative AI system is used without conducting individual development, with individual contracts concluded in addition to agreeing to standard terms and conditions or rules, etc.

Type C: Individual development of the generative AI system is conducted, and individual contract is concluded.

In cases that fall under Type A, it is generally assumed that the uses of the generative AI system do not involve handling of confidential information. Therefore, it should be verified whether it is unnecessary to establish requirements in the procurement specifications or contract based on the "Procurement Check Sheet" and "Contract Check Sheet" defined in "6.3.2 Measures to be Addressed during the Procurement of Generative AI Systems." This includes ensuring that there are no issues such as the presence of terms and conditions conflicting with the details in the "Procurement Check Sheet" and "Contract Check Sheet." (If there are requirements that need to be fulfilled, consider procuring in the form of Type B or Type C.)

In cases that fall into Type B or Type C, it is necessary to consider the balance between risks and countermeasures, for each measure to be addressed in a way that the measure is neither insufficient nor excessive, by taking the following perspectives into account:

- Project phase, such as whether it is in the Proof of Concept (PoC) stage or in the development stage in production environment
- (e.g., implementing all measures in check sheets during the PoC stage may result in

- excessive countermeasures.)
- Risk classification, such as whether the use is potentially high-risk or not (e.g., for potential high-risk uses, additional measures in relation to check sheets tailored to the use case may be necessary)
 - Nature of use cases (e.g., in cases where using generative AI system for searching a large number of documents within government offices, basic requirements such as "output control of harmful information" or "prevention of output or manipulation of false/incorrect information " in the Procurement Check Sheet may not be necessary.)

Accordingly, depending on specific generative AI system projects, it is essential to consider the aforementioned implementation types, project phases, risk levels, and the nature of use cases. Considering the preceding section (paragraph (1) of "6.1.2 Measures to be Addressed Based on this Guideline"), it is necessary to assess the balance between risks and countermeasures and to determine the required level of each measure, and to selectively incorporate or expand requirements and contractual matters as appropriate.

6.2 Measures to be Addressed by Chief AI Officers (CAIO) of Generative AI Systems in the Government

6.2.1 Development of Rules within Each Ministry or Agency

The Chief AI Officer (CAIO) of each ministry or agency shall develop the following rules to outline the (1) policy for generative AI uses within each ministry or agency, and (2) policy for addressing risk cases particular to generative AI systems. These rules shall be revised as needed based on revisions of this guideline as well as latest trends and the utilization status of generative AI.

(1) Rules for Users of Generative AI Systems

In order to boost proper uses of generative AI within each ministry or agency, the Chief AI Officer (CAIO) shall develop a rule for the Users (government staff) of generative AI systems in each ministry or agency based on "[Appendix 2] Model User Rule for Generative AI," considering following matters:

- Indispensable knowledge that Users should have before using generative AI systems, as well as important points to consider for handling confidential information

- Key points to be considered when utilizing generative AI, including (i) uses of the generative AI systems within the scope of specified utilization purposes (as described in the utilization rules for each generative AI system) and (ii) accountability and risk mitigation of the operations by the use of AI-generated outputs
- Appropriate handling of AI-generated content for official duties created by using generative AI system
- Measures related to intellectual property rights, etc. when utilizing generative AI systems
- Matters to be reported to the Chief AI Officer (CAIO) in the event of risk cases particular to generative AI

etc.

(2) Rules for Addressing Risk Cases Particular to Generative AI Systems

The Chief AI Officer (CAIO) shall develop rules for addressing risk cases particular to generative AI systems.

(Refer to "6.7 Addressing Risk Cases Particular to Generative AI Systems" for details)

6.2.2 Ensuring AI Governance within Each Ministry or Agency

The Chief AI Officer (CAIO) ensures AI governance by undertaking the actions outlined in (1), (2) and (3) below.

- (1) The Chief AI Officer (CAIO) shall establish an AI governance framework within each ministry or agency and continuously ensure proper AI governance in the ministry or agency. (Refer to "4.2 Development of AI Governance Frameworks within Each Ministry or Agency " for details.)
- (2) The Chief AI Officer (CAIO) shall take necessary measures to ensure that the procurements and utilizations of generative AI systems are conducted based on this guideline within each ministry or agency. In this regard, the Chief AI Officer (CAIO) formulates and revises relevant rules of the ministry or agency in accordance with this guideline, disseminates this guideline and the utilization rules for generative AI systems of the ministry or agency, and conducts training sessions (such as giving heads-up regarding input data and hallucinations).
- (3) Government information systems are subject to system audits conducted by the PMO of each ministry or agency under the “Digital Society Promotion Standard

Guidelines.” In audits of generative AI systems, given the characteristics of such systems, it is considered necessary to conduct audits with an understanding of risks particular to generative AI. Accordingly, in the above audits of generative AI systems, the Chief AI Officer (CAIO) shall also coordinate the response, and the matters described in this guideline shall also be referred to, including the implementation status of risk mitigation measures for high-risk generative AI.

In addition, in order to serve as a reference for specific approaches to audits of generative AI systems and to share knowledge with ministries and agencies, if audit findings, etc. that are considered useful for future consideration are identified in audits of generative AI systems, it is desirable for the Chief AI Officer (CAIO) to share them with the Advanced AI Utilization Advisory Board.

6.3 Measures to be Addressed by Planners of Generative AI Systems in the Government

6.3.1 Measures to be Addressed during the Planning Stage of Generative AI Systems

Planners of generative AI systems should undertake the measures listed below during the planning stage of generative AI systems. To maximize the benefits of generative AI, it is desirable for Planners to proceed with deliberations by leveraging both knowledge of administrative tasks and knowledge of generative AI system aspects at the time of planning. Therefore, Planners should make efforts to establish schemes where experts in both areas can collaborate in the planning of these generative AI systems.

- (1) Planners should clearly define the purpose of what they aim to achieve or solve by using the generative AI system and set appropriate goals of the project.
- (2) Planners should conduct an environment/risk analysis for the use case, while also considering methods to minimize risks and developing quality assurance plans throughout the operation of the generative AI system.
- (3) Based on the “Common Standards for Cybersecurity Measures for Government Agencies and Related Agencies,” Planners are required, for generative AI systems as well, to provide a function that enables only authorized persons to set access control according to the classification and handling restrictions, etc. of the information handled, from the perspective of appropriately implementing authority control.³³

³³ As a risk particular to generative AI, where the generative AI system handles confidential information or personal information and is configured so that inputs are used for training, it is necessary to address the risk that such inputs may be leaked to persons other than the inputter.

- (4) Based on the “Common Standards for Cybersecurity Measures for Government Agencies and Related Agencies,” it is necessary for Planners to retrieve and manage logs necessary to verify the information systems are appropriately used and free from unauthorized access and operation, etc. Regarding generative AI systems, to confirm the proper use of generative AI systems under “6.5 Measures to be Addressed by Providers of Generative AI Systems in the Government,” it is necessary to appropriately retrieve and manage logs such as inputs to and outputs from generative AI systems, access histories, etc.
- (5) For the control and supervision by the Digital Agency, Planners should report on the implementation schedule of generative AI systems, results of risk analysis, risk countermeasures, handling of public administration data, and other relevant matters.
- (6) For generative AI systems that are likely to pose high risks, Planners should collaborate with the Chief Artificial Intelligence Officer (CAIO) in reporting the project’s purpose, risk mitigation measures, and quality assurance plans throughout their operational period to the Advanced AI Utilization Advisory Board, as stated in "4.2.2 Reporting to the Advanced AI Utilization Advisory Board."
- (7) In anticipation of expanding the uses of generative AI within the government, it is important to optimize generative AI systems across the government through data linkage between systems within government agencies, shared use of generative AI systems across ministries and agencies, and the formation of joint projects and common systems. For instance, actively utilizing generative AI systems provided on common functions such as the Government Cloud can potentially enhance cost-effectiveness, ensure security, and facilitate integration with operational systems. Therefore, Planners should also consider the utilization of such services provided as common functions in the government when starting new generative AI system projects. (*)

*Based on the law related to the Government Cloud (Bill to Amend Part of Act on the Advancement of Government Administration Processes that Use Information and Communications Technology, Act No. 4 of 2025), national administrative organs are obligated to consider as an option to utilize the Government Cloud when developing information systems relevant to the execution of their own administrative tasks.

When contemplating the development or renewal of systems combined with

generative AI, it is necessary to consider whether it is possible to efficiently secure a generative AI environment by constructing the system on the Government Cloud and utilizing its packages or tools.

For further details on specific approaches to utilization methods, please refer to "Basic Considerations for the Utilization of Government Cloud."

- (8) Before the construction/release of a generative AI system, consideration should be given to ensuring usability so that the system is safe and resistant to misoperation for users,³⁴ and meets their usage needs. In doing so, reference should also be made to "4.2.4 Addressing Use Errors Specific to AI Systems and Ensuring Safety During Use," of the "DS-670.1 Usability Guidelines."³⁵

6.3.2 Measures to be Addressed during the Procurement Phase of Generative AI Systems

- (1) Planners should refer to "[Appendix 3] Procurement Check Sheet (for Generative AI Systems)" (hereinafter referred to as the "Procurement Check Sheet") and include, in procurement specifications, the requirements (stated in the "Procurement Check Sheet")³⁶ for service providers and the generative AI systems. Additionally, based on the results of the risk analysis and other relevant factors, Planners should consider adding any necessary requirement items not listed in the "Procurement Check Sheet."
- (2) When adopting a comprehensive evaluation method or competitive proposal method, Planners should reflect these requirements into the evaluation criteria as necessary.
- (3) Planners should obtain information regarding the generative AI system to be

³⁴ In this description, the term "users" is used in its general sense and is not limited to the "Users" described in "Table 2: Types of Intended Users of this Guideline" in "2.2.3 Intended Audience of this Guideline."

³⁵ "DS-670.1 Usability Guidelines" (Japanese version)

https://www.digital.go.jp/assets/contents/node/basic_page/field_ref_resources/e2a06143-ed29-4f1d-9c31-0f06fca67afc/a0942cf4/20260612_usability_guidelines.pdf

³⁶ The "Procurement Check Sheet" is formulated by referring to the AI Guidelines for Business and the "Guide to Evaluation Perspectives on AI Safety (Version 1.1)" published by AISI, among others. The "Procurement Check Sheet" organizes the requirements for procuring generative AI systems, along with examples and details of measures to meet these requirements, and examples of supporting information. The following perspectives are included: AI governance of suppliers of generative AI systems, appropriate input/output and data handling, ensuring quality of generative AI systems and services including prevention of the output of false or incorrect information, responding appropriately to risks particular to generative AI systems, ensuring proper handling for public use cases (i.e. including indication that the output is generated by generative AI), protection of personal information and intellectual property, assurance of security and explainability, and more.

procured, including information on the characteristics of the generative AI system, such as the generative AI model and architecture, and information on key performance indicators of the generative AI system. In addition, for the purpose of risk analysis and consideration of risk responses, Planners should make efforts, to a reasonable extent, to obtain information on the data used for training, training methods, and datasets.

- (4) To foster the growth of domestic startups in the generative AI business, leveraging “public procurement” is crucial. Therefore, Planners should evaluate digital startups in the procurement related to generative AI systems in accordance with the “Implementation Guidelines for Evaluation Systems in Procurement for Information Systems for Expanding Opportunities for Digital Startups to Enter the Public Procurement” (approved by the Council for the Promotion of a Digital Society Executive Board Meeting on January 15, 2024). Furthermore, when considering SaaS-based generative AI systems or services provided by companies to support such systems’ implementation, the “Digital Marketplace”³⁷ operated by the Digital Agency can be utilized. By leveraging the “Digital Marketplace,” rapid implementation can be achieved, and diverse businesses, including small and medium-sized enterprises and start-ups, will find it easier to access the public procurement market. Active utilizations of this “Digital Marketplace” are encouraged for the sake of accelerating fair competitions.
- (5) Planners should refer to the “[Appendix 4] Contract Check Sheet (for Generative AI Systems)” (hereinafter referred to as the “Contract Check Sheet”) ³⁸ and consider including key considerations for the procurement of generative AI systems in the contract or procurement specifications. Additionally, based on the results of the risk analysis and other relevant factors, Planners should consider adding any necessary items not listed in the “Contract Check Sheet.”

³⁷ Digital Market Place <https://www.dmp-official.digital.go.jp/>

³⁸ The “Contract Check Sheet” is formulated by referring to the AI Guidelines for Business, the Ministry of Economy, Trade and Industry’s “Checklist for Contracts Regarding AI Utilization and Development,” and the “Guidelines for Contracts Regarding the Use of AI and Data,” among others. The “Contract Check Sheet” organizes items that need to be confirmed at the time of contracting in the procurement process of generative AI systems, including ownership of rights related to inputs of generative AI systems, the scope of service provider obligations related to outputs, ownership of intellectual property rights, etc. related to outputs, the scope of service provider obligations in response to risk cases particular to generative AI systems, maintenance of expected quality, the scope of service provider obligations regarding matters such as environmental considerations, and other matters.

6.3.3 Measures to be Addressed during the Preparation Stage Before the Construction/Release of Generative AI Systems

Planners of generative AI systems should undertake the following processes prior to the system release.

(1) Verification of Stable Operation

- Based on the intended purpose and functions, create test scenarios for input/output verification, test the input/output, and confirm that the system operates stably and meets the expected quality standards. (*)

For example, the following content and methods may be considered.

- In the case of individual development, check for any prohibited outputs within the domain
- Check for the occurrence of inappropriate generation or bias (social biases such as prejudices and discrimination based on race, ethnicity, gender, etc.)
- Check whether the generative AI system satisfies the requirements set out in the procurement specifications
- Adopt diverse/independent internal and external testing methods such as red teaming

*If it is difficult to create scenarios solely by Planners, prepare them by conducting interviews with users and consulting with Developers, etc. For systems intended for public use, the individuals conducting operation checks may include citizens. Verification and improvement of data (such as training data and test data) may, depending on contractual provisions, be conducted not only by Planners but also by service providers (including generative AI system Providers).

(2) Promotion of Proper Use

Establish utilization rules and usage methods for each generative AI system and inform them to the users of the generative AI systems (referring to internal Users within ministries and agencies, as well as the citizens when the generative AI system is provided to them; the same applies hereinafter). In addition, particularly in cases of use outside ministries or agencies by a large number of unspecified external users, such as the general public, it is desirable to establish appropriate terms of use, etc., and to structure the use so that individual consent is obtained from users.

For example, the following content and methods may be considered.

- Purpose and scope of generative AI use, available generative AI environments, types of data permissible for use, conditions/procedures/usage methods, recommended and prohibited practices related to utilization, and other things users should be informed of based on specifics of the generative AI system
- When providing administrative information and functions through websites or other means, reference should also be made to “11. Ensuring Reliability When Using Generative AI, etc.,” of the “DS-680.2 Web Content Guidelines.”³⁹
- For generative AI systems that enable Users to create AI agents or similar AI capable of executing advanced tasks, establish and disseminate utilization rules that either restrict the creation of such AI agents that execute tasks without prior User judgment on the appropriateness of output results (corresponding to C(1) in the Risk Judgment Logic), or require Users to report to the Provider or the Chief AI Officer (CAIO) before starting use when they create such agents or similar AI.
- Provide important information and points to consider when utilizing generative AI systems in a manner that is easily understandable and accessible for the users of the generative AI systems.

For example, the following content and methods may be considered.

- Purpose and the scope of generative AI use, appropriate/inappropriate uses, technical features, foreseeable risks and mitigation plans, operational status, verification results of acceptance tests, details/status/recovery measures of risk cases particular to generative AI systems that have occurred, data collection policies, training methods, system architecture, data processing procedures, emergency contact information/inquiry desks, etc.
- Provide users information about the purpose and usage methods (including model constraints) of the systems being used.

For example, the following content and methods may be considered.

- Availability of data upload, upper limits of numbers of prompt token, response speed, etc.
- Inform users of the generative AI systems that their information may be collected by the systems.

For example, the following content and methods may be considered.

- Login histories, prompts and output results, etc. collected to fulfill

³⁹ “DS-680.2 Web Content Guidelines” (Japanese Version)

https://www.digital.go.jp/assets/contents/node/basic_page/field_ref_resources/e2a06143-ed29-4f1d-9c31-0f06fca67afc/a02f877e/20250930_web_content_guidelines.pdf

appropriate oversight / accountability / investigation responsibilities of the usage status

6.4 Measures to be Addressed by Developers of Generative AI Systems in the Government

In the government sector, the development of generative AI systems is carried out primarily through outsourcing to service providers. Therefore, the requirements for Developers are included in requirements for procurement applicants in specifications and contracts, as detailed in "6.3 Measures to be Addressed by Planners of Generative AI Systems in the Government."

In cases where government staff themselves engage in the development of generative AI systems, they are expected to undertake the initiatives stated in "Part 3 Matters Related to AI Developers " of the AI Guidelines for Business.

6.5 Measures to be Addressed by Providers of Generative AI Systems in the Government

Providers of generative AI systems should undertake the following processes after the releases of the systems.

(1) System Operation

- Monitor to ensure that the output of the generative AI system meets expected quality standards and does not produce inappropriate generations nor biases. For example, the following content and methods may be considered.
 - Conduct sample checks of usage logs such as prompts and output results when available, regularly monitor inputs and outputs, and verify the decision rationale to ensure they are not biased nor based on a specific cultural background
 - Conduct surveys of users and analyze the actual utilization situation to check whether inappropriate generation or bias has not occurred
- Regularly verify that the generative AI system is being used for appropriate purposes and that they are not being used in ways out of purposes. For example, the following content and methods may be considered.
 - Conduct sample checks of usage logs such as prompts and output results when available, ensuring that no input has been made that appears to be in anticipation of outputs unrelated to task operations.

- Conduct surveys of users and analyze actual utilization situations to evaluate the adherence to intended usage of the system
- When a major update to the generative AI model is implemented or additional training is conducted on a large scale, provision should begin only after confirming, before the generative AI system is provided to users, that the output results of the generative AI system meet the expected quality, that no inappropriate generation or bias has occurred, and that security measures, changes in non-functional requirements, necessary costs, etc. have been confirmed, while also taking into account the purpose and intended use of the generative AI system and the associated costs.
- Appropriately operate access control functions to ensure that the entities authorized to grant access to the generative AI system and to the information handled by the generative AI system are strictly limited.
- Check whether there is no improper handling of personal information, nor any leakage of personal/confidential information, nor violation of privacy.

For example, the following content and methods may be considered.

- Conduct sample checks of usage logs such as prompts and output results when available, detect if there are any cases where personal data is suspected to be used for an unintended purpose, if confidential information beyond the expected input range of the generative AI systems is included in the input, and if privacy has been violated
- Conduct surveys of users and analyze the actual utilization situation to check if similar incidents have occurred
- Stay updated on the latest risks associated with generative AI systems (including diversified attack methods) and trends in their countermeasures and implement necessary measures to address them.⁴⁰

For example, the following content and methods may be considered.

- Regularly review reports of information security incidents (as defined in JIS Q 27000:2019), examples of risk cases particular to generative AI systems, and reports by model developers on vulnerabilities, in order to execute necessary actions.)
- Conduct reviews to assess usefulness and identify issues concerning the input-output aspects of the generative AI system, informing users of them as necessary.

⁴⁰ For details on addressing general security risks related to generative AI systems, with respect to LLMs, please also refer to the measures described as possible security measures when providing AI, including “3.4 Measures to be Taken by AI Providers,” “3.5 Other Basic Measures, etc. for AI Developers and Providers,” and the “Appendix (Supplementary Documents)” of the “Guidelines on Technical Measures to Ensure the Security of AI.”

For example, the following content and methods may be considered.

- Evaluate the system's inputs, outputs, and decision rationale in order to share with users effective usage methods to make the most of usefulness and provide caution to prepare for potential issues
- Conduct surveys of users and analyze the actual utilization situation by asking users to share information about usefulness and issues of the system.
- Present terms of use, etc. to users as part of efforts regarding measures related to intellectual property rights, etc., and, to the extent possible, provide information on mechanisms in the generative AI system to prevent infringement, etc. of intellectual property rights, etc.
- If a Provider recognizes, or becomes objectively recognizable, that infringement of the rights of third parties, etc. is occurring through the generative AI system it provides, the Provider may be required to take reasonable measures, such as corrective measures. It should also be noted that, depending on the specific facts of each case, failure to take necessary measures after the point at which such infringement became recognizable may be considered as a factor, and the likelihood of being held liable may increase.
- For generative AI systems that enable Users to create AI agents or similar AI capable of executing advanced tasks, if Users create AI agents that execute tasks without prior User judgment on the appropriateness of output results (corresponding to C(1) in the Risk Judgment Logic), it is required to have Users report to the Provider or the Chief AI Officer (CAIO). If the Provider receives such a report, the Provider is required to report it to the Chief AI Officer (CAIO).

(2) System Maintenance

- Encourage service providers to make decisions regarding the improvement of generative AI systems as necessary.

For example, the following content and methods may be considered.

- Reevaluate biases among various technological components within the generative AI system and propose improvements if bad changes are identified based on the evaluation results
- Consider and address vulnerabilities, in compliance with the "Common Standards for Cybersecurity Measures for Government Agencies and Related Agencies" and implement necessary actions.

For example, the following content and methods may be considered.

- If vulnerabilities inherent to a generative AI system's programs are detected,

consider and carry out measures such as patching or model updates

(3) Addressing Risk Cases Particular to Generative AI Systems

(Refer “6.7 Addressing Risk Cases Particular to Generative AI Systems” for details)

6.6 Measures to be Addressed by Users of Generative AI Systems in the Government

Users are required to comply with the rules in accordance with this guideline. The rules to be complied with are the utilization rules of generative AI systems established by each ministry or agency (see “6.2 Measures to be Addressed by Chief AI Officers (CAIO) of Generative AI Systems in the Government”), as well as the utilization rules for each generative AI system (see “6.3.3 Measures to be Addressed during the Preparation Stage Before the Construction/Release of Generative AI Systems”).

6.7 Addressing Risk Cases Particular to Generative AI Systems

Even if all measures to address the risks mentioned above are implemented, it is not possible to eliminate risks entirely. Therefore, it is essential for each ministry or agency to prepare measures to be addressed in the event that risks become apparent, alongside taking measures to mitigate risks. Due to the nature of generative AI systems, there is a possibility of specific risk cases unique to these systems in relation to their output results. The following are examples of risk cases particular to generative AI systems.

- Generative AI has produced output that could pose significant social issues, such as biases or discrimination related to race, gender, culture, etc.
- Generative AI has generated aggressive or dangerous content.
- Generative AI has output information that is factually incorrect (hallucination), and users have used such information, leading to their disadvantages or harm to the users or third parties.
- Users have unintentionally generated content similar to existing works by using generative AI, potentially leading to issues such as copyright infringement. As a result, users have received requests for removal or other actions from the rights holders of the relevant works.
- An audio response function has generated voice output similar to the voice of a well-known individual, and the individual concerned requested for cessation.
- Generative AI has generated an image with unnatural depictions, and users have used it without noticing that it was unnatural, leading to criticism from the public as a result of including it in public documents, etc.

- Due to inaccurate voice input, the meaning of records created based on such input has differed from the original meaning, and it has been pointed out that the accuracy of important records has been compromised.

As measures against risk cases particular to generative AI systems, etc., government staff should implement the following.

- (1) The Chief AI Officer (CAIO) should establish procedures for responding to risk cases particular to generative AI systems based on this guideline.
- (2) If a risk case particular to generative AI systems occurs, the Chief AI Officer (CAIO) and the Provider of the generative AI system should take the lead in taking appropriate measures, taking into consideration the degree of severity and impact.
- (3) To enhance the ability to respond to risk cases particular to generative AI systems across the government, the Advanced AI Utilization Advisory Board (Secretariat) should aggregate knowledge regarding such cases. To this end, the Chief AI Officer (CAIO) must report to the Advanced AI Utilization Advisory Board (Secretariat) both upon the occurrence and after addressing risk cases particular to generative AI systems. The Advanced AI Utilization Advisory Board (Secretariat) will provide advice to ministries and agencies as needed regarding the risk cases.
- (4) There is a possibility of incidents including the nature of both information security incidents and risk cases particular to generative AI systems (e.g., the training data of generative AI systems may be contaminated by cyber attackers, reducing the accuracy of the model and making it more likely to generate prejudiced outputs). Under such circumstances, it is necessary to ensure appropriate coordination between the response frameworks of both information security incident and risk cases particular to generative AI systems, or to collaborate by leveraging the expertise of both frameworks. The basic protocol for this case is to follow the procedures defined by each ministry or agency for handling information security incidents.

In the event of a risk case particular to such generative AI systems, it is important to consider requesting necessary data from relevant business operators and conducting necessary audits to ensure appropriate responses (in order to ensure that these are handled appropriately, consider incorporating these measures

into contracts with the business operators related to generative AI systems).

- (5) In the event of incidents such as personal information leaks related to generative AI systems, appropriate measures must be taken by following the procedures defined by each ministry or agency. In such situations, there must be proper coordination between the personal information protection response framework and the response framework of risk cases particular to generative AI systems.

7 Future Approaches

Because technologies related to generative AI are advancing day by day, procurements and utilizations of generative AI by the government may face unanticipated new risks. Therefore, the government will continue to review rules on procurement and utilization of generative AI in a timely manner.

End of Document

Supplementary Provisions

This decision will come into effect on September 1, 2026. Necessary measures regarding “6.2 Measures to be Addressed by Chief AI Officers (CAIO) of Generative AI Systems in the Government” shall be stipulated by June 30, 2026, and the scope subject to the AI governance framework under “2.2.2 Generative AI Targeted by this Guideline” shall apply from July 1, 2026.

Date of Entry	
Affiliation (Ministry/Department, etc.)	
System Name	
Name of the Person Entering the Form	

Appendix 1
Provisional Translation

Risk Assessment Result	Please fill in the “Response” column in the table below.
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■High-Risk AI Project Finder Checklist
Please verify the following checklist and fill out the response section based on assumptions at the planning stage.

Risk Axes	Checklist	Options	Response	Comments (Free Text)
A. Applicable Operations	Which of the following best describes the operations to which the system will be applied?	(1) Operations where defects in content generated by Generative AI*1 could potentially have significant impacts*2 (2) Not applied to operations where defects in content generated by Generative AI*1 could potentially have significant impacts *1 Errors in information provided by Generative AI, etc. *2 Operations substantially affecting the fundamental rights or safety of citizens; operations involving sensitive policy fields; operations affecting human life, physical well-being, or property, or significantly affecting the operations of corporations; operations requiring qualifications; operations requiring a high level of explainability; etc.		
B. Scope of Use	Which of the following best describes the scope of use?	(1) A large number of unspecified external users (general public, etc.) (2) Specified external users* (3) Used by government staff within and across multiple ministries and agencies (e.g., use in a common government system) (4) Used by government staff within a single ministry or agency *Limited to persons who are capable of judging the appropriateness of output results based on their own knowledge of Generative AI risks, operational knowledge, etc.		
C. Judgment of Output Results by Staff, etc.	Which of the following best describes the operation relating to the judgment of output results?	(1) Output results of the Generative AI System are utilized without judging their appropriateness (2) Output results of the Generative AI System are utilized after judging their appropriateness		

*How to Use the "High-Risk Project Finder"

The "High-Risk AI Project Finder" is a tool designed to provide a simplified suggestion of whether a case is "likely to be classified as high-risk" or "unlikely to be classified as high-risk" by responding to questions related to the three risk axes mentioned below. The judgement logic follows the flow outlined below.

[Image Before Filling out the List]

Date of Entry			Appendix 1	
Affiliation (Ministry/Department, etc.)				
System Name				
Name of the Person Entering the Form				
Risk Assessment Result	Please fill in the “Response” column in the table below.		Provisional Translation	
■High-Risk AI Project Finder Checklist Please verify the following checklist and fill out the response section based on assumptions at the planning stage.				
Risk Axes	Checklist	Options	Response	Comments (Free Text)
A. Applicable Operations	Which of the following best describes the operations to which the system will be applied?	(1) Operations where defects in content generated by Generative AI*1 could potentially have significant impacts*2 (2) Not applied to operations where defects in content generated by Generative AI*1 could potentially have significant impacts *1 Errors in information provided by Generative AI, etc. *2 Operations substantially affecting the fundamental rights or safety of citizens; operations involving sensitive policy fields; operations affecting human life, physical well-being, or property, or significantly affecting the operations of corporations; operations requiring qualifications; operations requiring a high level of explainability; etc.		
B. Scope of Use	Which of the following best describes the scope of use?	(1) A large number of unspecified external users (general public, etc.) (2) Specified external users* (3) Used by government staff within and across multiple ministries and agencies (e.g., use in a common government system) (4) Used by government staff within a single ministry or agency *Limited to persons who are capable of judging the appropriateness of output results based on their own knowledge of Generative AI risks, operational knowledge, etc.		
C. Judgment of Output Results by Staff, etc.	Which of the following best describes the operation relating to the judgment of output results?	(1) Output results of the Generative AI System are utilized without judging their appropriateness (2) Output results of the Generative AI System are utilized after judging their appropriateness		

[Image After Filling out the List]

Date of Entry			Appendix 1	
Affiliation (Ministry/Department, etc.)				
System Name				
Name of the Person Entering the Form				
Risk Assessment Result	Unlikely to be classified as "High-Risk"		Provisional Translation	
■High-Risk AI Project Finder Checklist Please verify the following checklist and fill out the response section based on assumptions at the planning stage.				
Risk Axes	Checklist	Options	Response	Comments (Free Text)
A. Applicable Operations	Which of the following best describes the operations to which the system will be applied?	(1) Operations where defects in content generated by Generative AI*1 could potentially have significant impacts*2 (2) Not applied to operations where defects in content generated by Generative AI*1 could potentially have significant impacts *1 Errors in information provided by Generative AI, etc. *2 Operations substantially affecting the fundamental rights or safety of citizens; operations involving sensitive policy fields; operations affecting human life, physical well-being, or property, or significantly affecting the operations of corporations; operations requiring qualifications; operations requiring a high level of explainability; etc.	(2)	
B. Scope of Use	Which of the following best describes the scope of use?	(1) A large number of unspecified external users (general public, etc.) (2) Specified external users* (3) Used by government staff within and across multiple ministries and agencies (e.g., use in a common government system) (4) Used by government staff within a single ministry or agency *Limited to persons who are capable of judging the appropriateness of output results based on their own knowledge of Generative AI risks, operational knowledge, etc.	(2)	
C. Judgment of Output Results by Staff, etc.	Which of the following best describes the operation relating to the judgment of output results?	(1) Output results of the Generative AI System are utilized without judging their appropriateness (2) Output results of the Generative AI System are utilized after judging their appropriateness	(2)	

[Judgement Logic] [High]=[Likely to be classified as "High-Risk"], [Low]=[Unlikely to be classified as "High-Risk"]

A. Scope and Types of Users

- (1) Operations where defects in content generated by Generative AI*1 could potentially have significant impacts*2
(2) Not applied to operations where defects in content generated by Generative AI*1 could potentially have significant impacts

*1 Errors in information provided by Generative AI, etc.

*2 Operations substantially affecting the fundamental rights or safety of citizens; operations involving sensitive policy fields; operations affecting human life, physical well-being, or property, or significantly affecting the operations of corporations; operations requiring qualifications; operations requiring a high level of explainability; etc.

B. Scope of Use

- (1) A large number of unspecified external users (general public, etc.)
(2) Specified external users*
(3) Used by government staff within and across multiple ministries and agencies (e.g., use in a common government system)
(4) Used by government staff within a single ministry or agency

*Limited to persons who are capable of judging the appropriateness of output results based on their own knowledge of Generative AI risks, operational knowledge, etc.

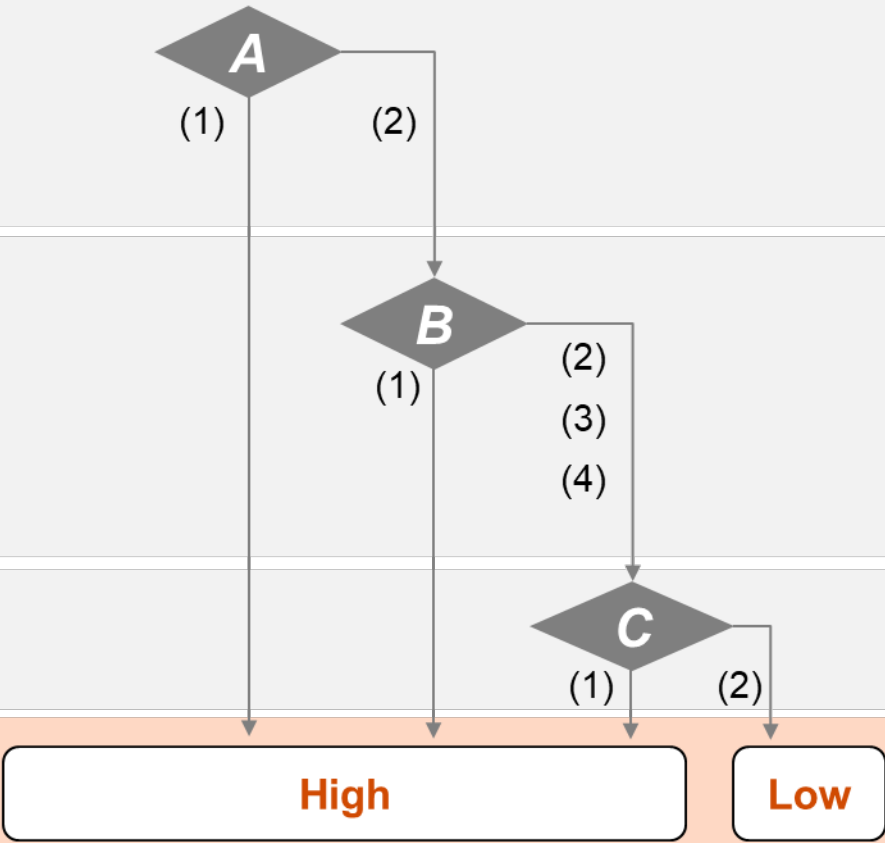
C. Judgment of Output Results by Staff, etc.

- (1) Output results of the Generative AI System are utilized without judging their appropriateness
(2) Output results of the Generative AI System are utilized after judging their appropriateness

Risk Definition

High: Likely to be classified as "High-Risk"

Low: Unlikely to be classified as "High-Risk"



Ministry of ○○ Rules for Users of Generative AI Systems (Model Ver2.0)

Month Date, Year

1. Purpose for Formulating These Rules

The purpose for formulating these rules is to stipulate matters that staff of the Ministry of ○○ must adhere to and consider when using generative AI systems, in order to promote the proper utilization of generative AI by the staff, based on the "Guideline for Japanese Governments' Procurements and Utilizations of Generative AI for the sake of Evolution and Innovation of Public Administration."

2. Rules for Users of Generative AI Systems

Users of generative AI systems must comply with the following rules: (1) Rules Before Use and (2) Rules During Use.

(1) Rules Before Use

- Understand that while various benefits are expected by utilizing generative AI, there are also risks such as the leakage of confidential information and hallucinations (i.e., cases where Generative AI outputs information that differs from facts). (For details on benefits and risks of generative AI, refer to "5 Boosting the Use of Generative AI with an Understanding of Benefits and Risks" in the "Guideline for Japanese Governments' Procurements and Utilizations of Generative AI for the sake of Evolution and Innovation of Public Administration.")
- Understand the usage methods, security considerations, and the accuracy/risk level of outputs from generative AI explained by the Planners or Providers of the generative AI system (government staff who operate generative AI systems used by other government staff or citizens; the same applies hereinafter). (Example: Before using generative AI, ensure understanding of the environment in which generative AI system can be used, conditions for the uses, rules, contact information for consultation, and response measures for information security incidents (as defined in JIS Q 27000:2019) and for risk cases particular to generative AI systems.)
- Understand in advance that input and output results from the generative AI system need to be provided to the system's Provider when necessary. (Example: Upon request from the Project Management Office (PJMO), if the data is accessible, submit

the input data or prompts, output results, and the data provision methods/format, etc.)

- When utilizing cloud-service based generative AI systems in operations, which are offered to a large number of unspecified users¹ and accessible merely by agreeing to standard terms and conditions or rules, etc., it is in principle prohibited to deal with confidential information. (As an exception, handling of confidential information requires approval from the Information Security Officer in accordance with the information security policy of the Ministry of ○ ○ .) Even if confidential information is not involved, when utilizing cloud-service based generative AI systems in operations, which are offered to a large number of unspecified users and accessible merely by agreeing to standard terms and conditions or rules, etc., obtaining approval for its utilization is necessary according to the information security policy of the Ministry of ○ ○ . Furthermore, even if confidential information is not involved, it is necessary to understand that if, for instance, server equipment is located overseas, where local laws and regulations may apply, and data may be censored or seized by the local governments and authorities.

(*) Please also refer to the "Notice Regarding the Operational Use of Generative AI such as DeepSeek (Administrative Notice)."²

(2) Rules During Use

1. Rules Regarding Input Data or Prompts

- Within the scope of the intended use of the generation AI system, Users must comply with the usage methods, including whether to allow the input of confidential information or personal information, and appropriately utilize the said generative AI system. (Examples: Utilize the generative AI system in accordance with the usage methods explained by the Provider of the generative AI system and refer to its manuals, as necessary. Avoid utilizing the generative AI system for purposes outside the scope explained by the Provider, input confidential information when such input is prohibited.)
- When inputting prompts containing personal information into the generative AI system, confirm in advance whether the input is permissible, and ensure that the

¹ In this provision, the term “users” is used in its ordinary meaning and is not limited to the “Users” described in “Table 2 Types of Intended Users of these guidelines” in “2.2.3 Intended Audience of this Guideline” of the main body of the Guideline.

² Notice Regarding the Operational Use of Generative AI such as DeepSeek (Administrative Notice) (Japanese version)
https://www.digital.go.jp/assets/contents/node/basic_page/field_ref_resources/d2a5bbd2-ae8f-450c-adaa-33979181d26a/e7bfeba7/20250206_councils_social-promotion-executive_outline_01.pdf

utilization or provision of personal information is minimal and necessary for the intended purpose. (Example: Properly determine whether Users can input prompts including personal information by checking the privacy policy or rules for Users stipulated by the generative AI system Provider of the Ministry of ○○ before using the generative AI system. If unsure, use prompts that do not contain personal information.)

- If administrative organs, etc. input prompts containing retained personal information into a generative AI system and the relevant personal information retained in the system is handled for the purposes different from outputting responses to the relevant prompt, the administrative organ may be in violation of the regulations prescribed in the Act on the Protection of Personal Information (Act No. 57 of 2003). Therefore, when entering such prompts, ensure that the Provider of the generative AI system does not utilize the retained personal information for machine learning or any other improper purposes.
- Particularly in situations where accuracy is required, input accurate and up-to-date data. (Example: Since inaccurate inputs can lead to incorrect responses, Users should check whether the information, such as its premise, is accurate or not before inputting data into the generative AI.)
- When inputting prompts, take measures to reduce risks such as the infringement of intellectual property rights and other rights (see Table 1). Endeavor to keep the generation process of AI-generated content, including the prompts used for generation—in a verifiable state, so that the absence of dependence on existing copyrighted works can be demonstrated.

*For details on examples of measures against risks relating to Intellectual property rights, etc., Users should refer to the “Guidebook on the Utilization of Generative AI for Content Production” issued by the Ministry of Economy, Trade and Industry on July 5, 2024, and the “Checklist & Guidance on AI and Copyright” issued by the Copyright Division of the Agency for Cultural Affairs on July 31, 2024.

Table 1 Examples of Countermeasures against Intellectual Property and Other Rights

Risks at the Prompt Input Stage³

Scenario	Examples of Measures
(1) Use of copyrighted works	To prevent the output of expressions that are identical or similar to another person's copyrighted work, do not input prompts that associate the output with a specific copyrighted work of another person. Alternatively, generate outputs after inputting your own copyrighted works, such as rough sketches drawn by yourself. etc.
(2) Use of registered designs or registered trademarks, or another person's product indications or product configurations	Do not input prompts that associate the output with a specific registered design, registered trademark, etc. etc.
(3) Use of a person's likeness	Do not input prompts that associate the output with a specific person, and do not input data itself that contains the likeness of a specific person. etc.
(4) Use of a person's voice	Do not input prompts that associate the output with a specific person, and do not input data itself that contains the voice of a specific person. etc.

2. Rules Regarding the Utilization of AI-generated content

- Recognize that decisions made based on output results from generative AI should be accountable. (Example: Users ensure that they can explain about the AI-generated content before utilizing them in their operational tasks. If necessary, rephrase the AI-generated content into expressions that the Users can explain by themselves.)
- Make responsible decisions regarding the uses of generative AI system outputs results in operations. (Example: Users themselves should determine whether it is appropriate to utilize the outputs of generative AI in operations, taking into consideration the such as input data or prompts, the confidentiality of output results where confidential information has been input, referenced, or learned, bias contained

³ Table 1 has been prepared based on the "Guidebook on the Utilization of Generative AI for Content Production" issued by the Ministry of Economy, Trade and Industry on July 5, 2024. (Japanese version) As the situations in which Generative AI may be utilized can vary widely, the risks that may arise and the measures that should be considered will also vary depending on the specific situation of utilization. Accordingly, the risks and examples of measures are not limited to those set forth in these Rules for Users. Users must make case-by-case determinations according to the specific situation of utilization and take appropriate measures.

in output results, and errors in proper nouns in speech-to-text transcription. If Users are unsure whether it is appropriate or not, do not utilize the outputs in operations.)

- Ensure accuracy, rationale, and factuality of the outputs, taking into consideration the level of associated risks.
- Ensure there are no issues regarding safety, fairness, objectivity, or neutrality of the outputs. Be sure to edit, omit, or correct any problematic expressions. (Example: Confirm that there is no use of discriminatory words or expressions that violate ethics, infringe third-party's rights, or do harm to / adversely impact on the life, body, or property of third parties.)
- Properly deal with documents for official duties created by using generative in accordance with the Public Records and Archives Management Act (Act No. 66 of 2009).⁴ In addition, input and output results from chats, etc. may constitute administrative documents if they are shared organizationally.
- Promptly report to the Chief AI Officer (CAIO) at xxx@xxx.go.jp upon detecting significant risk cases particular to generative AI systems. (Example: Generative AI outputs results contain prejudice or discrimination related to race, gender, or culture that could pose major social issues.)
- Because AI-generated content is not necessarily recognized as “works” under the Copyright Act, Users must carefully consider whether to use generative AI to create deliverables or other materials that need to be protected as copyrighted works.
- When using AI-generated content, including any edited or processed version of such content, Users must always confirm whether it infringes the copyright of existing copyrighted works — in particular, whether it is similar to any existing copyrighted work — or infringes any other Intellectual property rights, etc. In addition, Users should be able to appropriately explain that they have taken feasible confirmation measures, such as conducting internet searches. If AI-generated content, including any edited or processed version of such content, entails risks relating to Intellectual property rights, etc., Users must avoid using it — including distribution on the internet or transfer of copies — obtain permission from the rights holder, or recreate it so that it is not similar before using it. See Table 2.

Table 2 Examples of Measures Regarding Intellectual Property Rights, etc. at the Stage

⁴ Regarding the handling of documents formulated by using generative AI, the "Notification Regarding Creation and Management of Administrative Documents Using Digital Technologies" (issued by the Director of the Records and Archives Management Division, the Cabinet Office, on February 14, 2025) states that "documents formulated by staff of administrative organs by using AI in their official duties (such as draft minutes of councils) are regarded as administrative documents if they are retained for organizational use by the administrative organs. However, it is important to undergo necessary verifications to ensure the accuracy of these documents."

of Using AI-Generated Content⁵

Scenario	Examples of Measures
(1) Use of copyrighted works	- As with conventional content production that does not utilize generative AI, confirm whether the AI-generated content, including any edited or processed version of such content, is identical or similar to another person's copyrighted work by using internet searches or other means. - If the AI-generated content is identical or similar to another person's copyrighted work, avoid using it, obtain permission from the rights holder, or recreate it so that it is not similar before using it. etc.
(2) Use of registered designs or registered trademarks, or another person's product indications or product configurations	- As with conventional content production that does not utilize generative AI, confirm whether the AI-generated content, including any edited or processed version of such content, is identical or similar to a registered design, registered trademark, etc. by using internet searches or other means. - If the AI-generated content is considered identical or similar to a registered design, registered trademark, etc., avoid using it, obtain permission from the rights holder, or recreate it so that it is not similar before using it. etc.
(3) Use of a person's likeness	As with conventional content production that does not utilize generative AI, when using a person's likeness as AI-generated content, including any edited or processed version of such content, confirm by using internet searches or other means whether it is identical or similar to the likeness of a specific person, and then consider whether it would infringe the right of likeness. In addition, if it is identical or similar to the likeness of a

⁵ Table 2 has been prepared based on the "Guidebook on the Utilization of Generative AI for Content Production" issued by the Ministry of Economy, Trade and Industry on July 5, 2024. (Japanese version) As the situations in which Generative AI may be utilized can vary widely, the risks that may arise and the measures that should be considered will also vary depending on the specific situation of utilization. Accordingly, the risks and examples of measures are not limited to those set forth in these Rules for Users. Users must make case-by-case determinations according to the specific situation of utilization and take appropriate measures.

	person with customer-attracting power, consider whether it would infringe publicity rights. • If there is a possibility of infringement of the right of likeness or publicity rights, avoid using it, obtain permission from the rights holder, or recreate it so that the person is not identifiable or so that no rights are infringed before using it. etc.
(4) Use of a person's voice ⁶	• As with conventional content production that does not utilize generative AI, when using a person's voice as AI-generated content, including any edited or processed version of such content, confirm by using internet searches or other means whether it is identical or similar to the voice of a specific person, and then consider whether it would infringe publicity rights. • If there is a possibility of infringement of publicity rights, avoid using it, obtain permission from the rights holder, or recreate it so that the person is not identifiable or so that no rights are infringed before using it. etc.

3. Contact Information

For inquiries regarding these rules, contact the ○○ (Representative) of the Ministry of ○○ (yyy@yy.go.jp). For inquiries about various generative AI systems, contact the representatives of the respective generative AI system Provider. (In cases independent reporting rules are set for the use of specific generative AI systems, comply with those rules.)

End of Document

⁶ With respect to the protection of likenesses and voices, relevant concepts have been organized based on the Unfair Competition Prevention Act and judicial precedents.

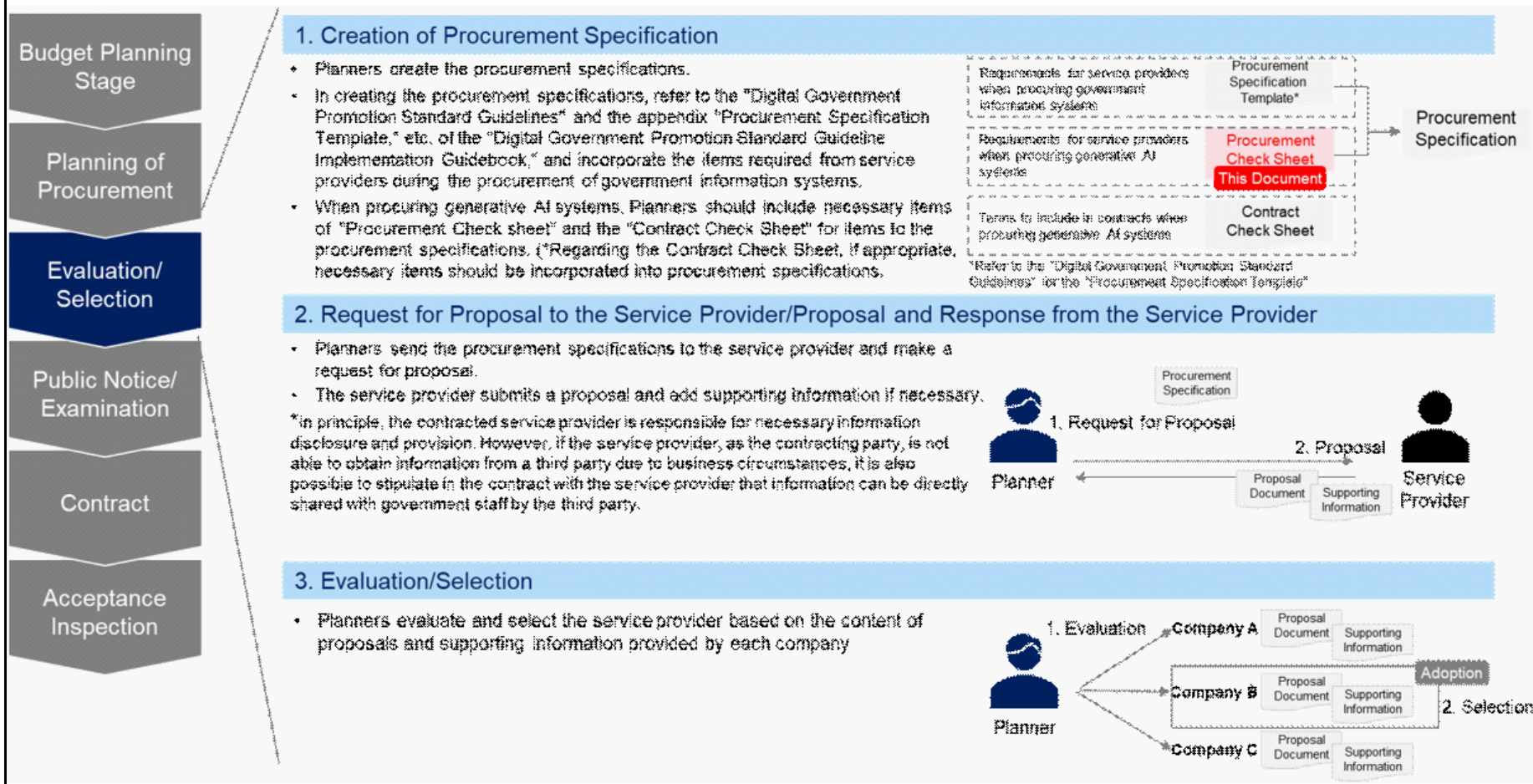
Ministry of Economy, Trade and Industry, 2025, "Organization of Concepts under the Current Unfair Competition Prevention Act Concerning the Publicity Value of Likenesses and Voices" (Japanese version)

https://www.meti.go.jp/policy/economy/chizai/chiteki/pdf/shozo_koe.pdf

This check sheet organizes the items for evaluating and selecting service providers when procuring generative AI systems. Planners should refer to this check sheet when creating procurement specifications for procuring generative AI systems. (Also refer to "[Appendix 4] Contract Check Sheet (for Generative AI Systems)." If appropriate, these items should be included in procurement specifications.)

However, this check sheet only includes terms specific to the "procurement of generative AI systems" that require particular attention. Therefore, it is necessary to also refer to the content of the "Digital Government Promotion Standard Guidelines" and the appendix "Procurement Specification Template" of the "Digital Government Promotion Standard Guideline Implementation Guidebook" when creating the procurement specification.

In this check sheet, "[Appendix 3] Procurement Check Sheet (for Generative AI Systems)" is referred to as the "Procurement Check Sheet" and "[Appendix 4] Contract Check Sheet (for Generative AI Systems)" is referred to as the "Contract Check Sheet."



Structure of this Check Sheet

"Procurement Check Sheet" Sheet

Procurement Check Sheet				
Classification	Evaluation Viewpoints No.	Evaluation Viewpoints	Classification of Items for Evaluation and Selection	Req. No.
Requirements on Organizational Matters	1	Compliance with the Common Guiding Principles of the AI Guidelines for Business	Basic Requirements	1
	2	Establishment of AI Governance	Basic Requirements	2
	3	Understanding of Trends in the AI Industry and Latest Technologies	Basic Requirements	3
	4	Response to Information Security Incidents and Risk Cases Particular to Generative AI Systems	Basic Requirements	4
	5	Education/Literacy Regarding Generative AI for Stakeholders	Basic Requirements	5
Requirements on Development/Implementation Processes	6	Handling of Data	Basic Requirements	6
	7	Assurance of Outputs Quality	Basic Requirements	7
	8	Avoidance of Vendor Lock-In	Basic Requirements	8
			Optional Additional Requirements (Optional Criteria)	9

Note: Items in this column are requirements for service providers, which are intended to be included in procurement specifications for generative AI systems.
Note: The degree of requirement level of each item and selection/addition of items are to be considered, taking into account the project type, the project stage, the project's risk level, etc., as stated in "6.1.2 Measures to be Addressed Based on this Guideline."

Column A Classification

Column C Evaluation Viewpoints

Column D Classification of Items for Evaluation and Selection

Column F Requirements

【Column A: Classification】

As a broad framework for evaluating service providers, the "Requirements on Organizational Matters," "Requirements on Development/Implementation Processes," and "Basic Functional Requirements of the Generative AI System" are established. This column distinguishes "Column C: Evaluation Viewpoints" and "Column F: Requirements."

【Column C: Evaluation Viewpoints】

This column describes the purposes and viewpoints for complying with the requirements

【Column D: Classification of Items for Evaluation and Selection】

A column for understanding the requirements that are mandatory in principle. Among the “Requirements,” items that are considered to be required in principle for Generative AI Systems procured by government agencies are designated as “Basic Requirements.” Requirements designated as “Basic Requirements” should, in principle, be included as items required of applicants at the time of procurement.Items that are mandatory in principle when certain conditions are met are described as “Applicable when XX.”

Requirements designated as “Optional Additional Requirements (Optional Criteria)” are viewpoints that should be considered as necessary and are intended to be treated as optional criteria in procurement evaluation items.

【Column F: Requirements】

Items in this column are requirements for service providers, which are intended to be included in procurement specifications for generative AI systems. The degree of requirement level of each item and selection/additon of items are to be considered, taking into account the project type, the project stage, the project's risk level, etc., as stated in "6.1.2 Measures to be Addressed Based on this Guideline."

Procurement Check Sheet					Reference of Requirements											
Classification	Evaluation Item No.	Evaluation Viewpoints	Classification of Items for Evaluation and Selection	Item No.	Requirements	AI Covered by the Examples of Measures					Note: Examples of technologies for complying with the "Requirements" are provided. It is not necessary to strictly adhere to the examples of measures. Failure to conduct the above review is the responsibility of the procurement entity. Other requirements may also be added based on specifications.	Examples of Measures	Detailed Examples of Measures	Examples of Supporting Information	(Reference) Correspondence with the "Various Templates" in the "DS-120 Digital Government Promotion Standard Guideline Implementation Guidelines"	(Reference) Materials for the Example of Measures and Detailed Example of Measures
						Includes Text	Includes Audio	Includes Text	Includes Images	Includes Audio						
Column A	Column C	Column D	Column F	Column G-K	Column L,M	Column N	Column O	Column P	Column Q	Column R	Column S	Column T	Column U	Column V	Column W	Column X

【Column A: Classification】

As a broad framework for evaluating service providers, the "Requirements on Organizational Matters," "Requirements on Development/Implementation Processes," and "Basic Functional Requirements of the Generative AI System" are established. This column distinguishes "Column C: Evaluation Viewpoints" and "Column F: Requirements."

【Column C: Evaluation Viewpoints】

Describes the purposes and viewpoints for complying with the requirements

【Column D: Classification of Items for Evaluation and Selection】

A column for understanding the requirements that are mandatory in principle. Among the “Requirements,” items that are considered to be required in principle for Generative AI Systems procured by government agencies are designated as “Basic Requirements.” Requirements designated as “Basic Requirements” should, in principle, be included as items required of applicants at the time of procurement.Items that are mandatory in principle when certain conditions are met are described as “Applicable when XX.”

Requirements designated as “Optional Additional Requirements (Optional Criteria)” are viewpoints that should be considered as necessary and are intended to be treated as optional criteria in procurement evaluation items.

【Column F: Requirements】

Items in this column are requirements for service providers, which are intended to be included in procurement specifications for generative AI systems. The degree of requirement level of each item and selection/additon of items are to be considered, taking into account the project type, the project stage, the project's risk level, etc., as stated in "6.1.2 Measures to be Addressed Based on this Guideline" of this guideline.

【Columns G–K: AI Covered by the Examples of Measures】

The columns indicate the types of Generative AI targeted by each example of measures. They are flagged for text input, voice input, text output, voice output, and image output AI, which are within the scope of AI covered by the Guideline.

【Column L/Column M: Examples of Measures/Detailed Examples of Measures】

Examples of methodologies for complying with "Column F: Requirements" are provided. It is not necessary to strictly adhere to the examples of measures. Based on selection, the Planner incorporates only the necessary details of the requirements into the procurement specification.This information is reference information for Planners, and measures for the items described in procurement specifications should be proposed by service providers. Planners should evaluate the measures proposed by service providers in light of the characteristics of the AI to be procured.

【Column N: Examples of Supporting Information】

Examples of information used to determine whether the requirements are fulfilled are provided. Consider whether to request provision of this information from the service provider if necessary.

【Column O: (Reference) Correspondence with the "Various Templates" in the "DS-120 Digital Government Promotion Standard Guideline Implementation Guidebook"】

This column provides the correspondence of the requirements with the "Digital Government Promotion Standard Guidelines" and the appendix "Procurement Specification Template," "Requirement Definition Document Template"of the "Digital Government Promotion Standard Guideline Implementation Guidebook." When creating the procurement specification, refer to these various templates.

【Column P: (Reference) Materials Referenced for the Example of Measures and Detailed Example of Measures】

This column lists government guidelines and other materials that were referenced when creating “Column L and Column M: Example of Measures / Detailed Example of Measures.”

*Regarding example of measures, detailed example of measures, and examples of supporting information, updates to the descriptions will be considered flexibly, taking into account changes in technology and business environments.

How to Use this Check Sheet

- Planners should incorporate necessary items from "Column F: Requirements" into the procurement specification.
 - *At that time, refer to "Column D: Classification of Items for Evaluation and Selection." "Basic Requirements" are assumed to be mandatory items to be fulfilled in principle for evaluating and selecting service providers.
 - *"Optional Additional Requirements (Optional Criteria)" are not mandatory but are viewpoints that should be considered. If included as evaluation items, they are assumed to be additional factors.
 - *Requirements that state "Applicable when used outside of ministries or agencies" or "Applicable when handling personal information," etc., are assumed to be mandatory items to be fulfilled in principle if the project meets the conditions.
 - *"Column L/Column M: Example of Measures/Detailed Example of Measures" are literally examples; not necessarily need to be fully satisfied, and adherence to requirements by using the methods other than these examples is acceptable.
 - *Additionally, refer to the "Procurement Specification Template" required by the "Digital Government Promotion Standard Guidelines" and include items in it necessary for procuring government information systems.
- Planners should determine the information requested to be provided by the service provider by referring to "Column N: Examples of Supporting Information."
- Planners should distribute the procurement specifications to potential service providers and requests proposals.
- Planners should evaluate and select service providers based on their proposals and responses.

Scope of this Check Sheet

This check sheet applies to systems that incorporate generative AI, as described in "2.2.2 Generative AI Targeted by this Guideline," within the government information systems mentioned in "2.2.1 Information Systems Targeted by this Guideline."

Supplementary Explanation of Terms

- Large Language Model (LLM): A language model that treats the probability of occurrence of sentences and words as a deep-learning model and constructed using very large amounts of training data.
(Source: Guidelines for Quality Assurance of AI-based Products and Services (Excerpt of the QA4AI Guidelines: Chapter on LLM and Conversational Generative AI) by Consortium of Quality Assurance for Artificial-Intelligence-based Products and Services, P.2-1)
- Generative AI: A general term representing AI developed from an AI model that can generate texts, images, programs, etc.
(Source: AI Guidelines for Business, P.10)
- Generative AI System: An AI system that incorporates generative AI as a component. (In accordance with AI Guidelines for Business, P.9) In this Guideline, the term “generative AI system” refers to a generative AI system that incorporates a generative AI model targeted by this Guideline as a component.
- Generative AI Model: An AI model that can generate texts, images, programs, etc. (In accordance with AI Guidelines for Business, P.10) In this Guideline, the term “Generative AI Model” refers to a generative AI model that incorporates generative AI targeted by this guideline as a component.
- Training: Training is the process of determining or improving the parameters of an AI model using data, and consists of two processes: pre-training, which builds the foundation model, and post-training, which involves continuous parameter adjustments as needed. Training encompasses methods such as supervised learning, unsupervised learning, and reinforcement learning. The data used for training is divided into training data, validation data, and test data, which are used for the building and evaluation of AI models. (Source: AI Guidelines for Business, P.10)
- Inference: Inference is the process of providing new data to a trained model and computing outputs (such as predictions, classifications, and generation). In the inference process, data for inference is used, which includes information that the model directly processes, such as prompts from users and sensor-acquired data, as well as additional information referenced through mechanisms such as RAG (Retrieval-Augmented Generation) as needed. (Source: AI Guidelines for Business, P.10)
- Raw Data for Training: Data provided to a service provider by government staff involved in the use of a generative AI system (Including Planners, Developers, and Providers, as well as by external users) for use in training a generative AI model.
- Training Data: Data created by the service provider for training purposes through processing and modification, etc. of the raw data (for training) provided by government staff involved in the use of a generative AI system (Including Planners, Developers, and Providers, as well as by external users).
- Information Security Incidents: Refers to information security incidents as defined in JIS Q 27000:2019.
- Risk Cases Particular to Generative AI Systems: A condition where risks inherent to a generative AI system have materialized, or where signs or events indicating the possible materialization of such risks are observed, which may have significant impacts.

Procurement Check Sheet					
Classification	Evaluation Viewpoints No.	Evaluation Viewpoints	Classification of Items for Evaluation and Selection	Req. No.	Note: Items in this column are requirements for service providers, which are intended to be included in procurement specifications for generative AI systems. Note: The degree of requirement level of each item and selection/addition of items are to be considered, taking into account the project type, the project stage, the project's risk level, etc., as stated in "6.1.2 Measures to be Addressed Based on this Guideline."
					Requirements
Requirements on Organizational Matters	1	Compliance with the Common Guiding Principles of the AI Guidelines for Business	Basic Requirements	1	To be able to declare the capability of understanding, comprehending and complying the Common Guiding Principles of the AI Guidelines for Business.
	2	Establishment of AI Governance	Basic Requirements	2	AI governance* is applied in developments and operations of generative AI systems. *A control mechanism/operation mechanism to maximize the positive impact of AI, while managing AI-related risks at an acceptable level.
	3	Understanding of Trends in the AI Industry and Latest Technologies	Basic Requirements	3	Grasping trends in the AI industry and latest technologies to improve quality and explainability in the development and operation of generative AI systems.
	4	Response to Information Security Incidents and Risk Cases Particular to Generative AI Systems	Basic Requirements	4	Having response frameworks and procedures for information security incidents and risk cases particular to generative AI systems (limited to those within the service provider's scope of responsibility), including cooperation responding to users' reports about the incidents in services that your business have developed and is operating.
	5	Enhancement of Education/Literacy Regarding Generative AI for Stakeholders	Basic Requirements	5	Taking necessary actions to enhance literacy about generative AI for staff or sections involved in the development and operation of generative AI systems.
Requirements on Development/ Implementation Processes	6	Handling of Data	Basic Requirements	6	Properly supervise the handling of inputs, outputs, or processed data within generative AI systems.
	7	Assurance of Outputs Quality	Basic Requirements	7	Taking proper actions to meet the expected quality standards of generative AI systems.
	8	Avoidance of Vendor Lock-In	Basic Requirements	8	To be able to explicitly describe information on generative AI models being used, including version information.
			Optional Additional Requirements (Optional Criteria)	9	To be able to provide disclosure or share information to the Planner to a reasonable extent, in order to make sure that parts of the prompts or parameters entered into generative AI systems are not concealed.
			Optional Additional Requirements (Optional Criteria)	10	Having technology to offer features such as saving past chat histories, registering prompts as templates, and exporting such data.
			Optional Additional Requirements (Optional Criteria)	11	Having technology to select or combine the optimal generative AI model from multiple options, considering that each generative AI model has characteristics that lead to different functions and behavior, when the primary purpose is not to use of a specific generative AI model.
			Basic Requirements	12	To be able to develop and operate the Generative AI System in a manner that takes into account ease of migration of vendors or systems in the architecture design and implementation of the Generative AI System.
	9	Consideration of Proper Updates to Generative AI Models	Basic Requirements	13	Mitigate risks from viewpoints particular to generative AI with regard to major system updates or migrations.
	10	Cultural/Linguistic Considerations	Optional Additional Requirements (Optional Criteria)	14	The generative AI system is capable of outputs that are align with Japan's linguistic and cultural environment.
Basic Functional Requirements of the Generative AI System	11	Environmental Considerations	Optional Additional Requirements (Optional Criteria)	15	Developing and providing environmentally conscious generative AI systems.
	12	Control of Harmful Output	Basic Requirements	16	Controlling outputs of harmful information, such as information related to terrorism, crime, or offensive expressions.
	13	Prevention of Misinformation, Disinformation and Manipulation	Basic Requirements	17	Implementing measures to prevent the output of misinformation/disinformation by generative AI systems.
			Applicable as Basic Requirements when used outside of ministries or agencies by a large, unspecified number of external users, such as the general public.	18	Ensuring that end users can distinguish the output of generative AI systems from information output by humans.
			Applicable as Basic Requirements when used outside of ministries or agencies by a large, unspecified number of external users, such as the general public.	19	Implementing controls, etc. to prevent the generative AI system from unduly inducing users' decision-making.
	14	Fairness and Inclusion	Applicable as Basic Requirements when used outside of ministries or agencies by a large, unspecified number of external users, such as the general public.	20	Restricting the output of harmful bias and unjust discrimination.
			Basic Requirements	21	Taking measures to ensure that outputs are easy for all users to understand.
	15	Addressing Uses for Purpose Other than the Original Intent	Basic Requirements	22	Preventing use for purposes other than the intended purpose, and implementing input and output restrictions, etc. so that harm or disadvantage is less likely to occur even if such unintended use occurs.
	16	Personal Information, Privacy, Intellectual Property	Applicable as Basic Requirements when handling personal information or where privacy protection is necessary	23	Taking measures to ensure the appropriate handling of personal information and the protection of privacy in the generative AI system.
			Applicable as Basic Requirements when handling intellectual property, etc. in a generative AI system	24	Measures are taken to ensure the protection of Intellectual property rights, rights of likeness, and publicity rights at the generation stage.
			Applicable as Basic Requirements when training a generative AI model in planning or development.	25	Measures are taken to ensure the protection of Intellectual property rights, etc. at the training stage.

Procurement Check Sheet					
Classification	Evaluation Viewpoints No.	Evaluation Viewpoints	Classification of Items for Evaluation and Selection	Req. No.	Note: Items in this column are requirements for service providers, which are intended to be included in procurement specifications for generative AI systems. Note: The degree of requirement level of each item and selection/additon of items are to be considered, taking into account the project type, the project stage, the project's risk level, etc., as stated in "6.1.2 Measures to be Addressed Based on this Guideline." Requirements
	17	Ensuring Security	Basic Requirements	26	Addressing vulnerabilities across the entire generative AI system and taking measures to prevent impacts caused by unauthorized operations.
			Applicable as Basic Requirements when a high level of reliability is required for the generative AI system	27	Taking measures to minimize impacts after detecting an information security incident or Risk Case Particular to generative AI systems, while ensuring rapid containment and recovery capabilities.
			Basic Requirements	28	Appropriately implementing security measures throughout the development process of generative AI systems.
	18	Explainability	Basic Requirements	29	Taking measures to ensure that the rationale for outputs can be confirmed to a technically reasonable extent.
	19	Robustness	Basic Requirements	30	Implementing controls, etc. so that generative AI systems provide stable outputs in response to inputs.
	20	Data Quality	Basic Requirements	31	Taking measures to maintain data accessed by generative AI systems in an appropriate state.
			Optional Additional Requirements (Optional Criteria)	32	Structuring input data appropriately to enhance the outputs of generative AI systems.
	21	Verifiability	Basic Requirements	33	Making the development and provision processes of generative AI systems verifiable.

Procurement Check Sheet					Reference of Requirements										
Classification	Evaluation Viewpoints No.	Evaluation Viewpoints	Classification of Items for Evaluation and Selection	Req. No.	Requirements	AI Covered by the Examples of Measures					Examples of Measures	Detailed Examples of Measures	Examples of Supporting Information	(Reference) Correspondence with the "Various Templates" in the "DS-120 Digital Government Promotion Standard Guideline Implementation Guidebook"	(Reference) Materials for the Example of Measures and Detailed Example of Measures
						Input		Output							
						Includes Text	Includes Audio	Includes Text	Includes Images	Includes Audio					
Requirements on Organizational Matters	1	Compliance with the Common Guiding Principles of the AI Guidelines for Business	Basic Requirements	1	To be able to declare the capability of understanding, comprehending and complying the Common Guiding Principles of the AI Guidelines for Business.	●	●	●	●	●	To be able to submit and explain the status of compliance with the checklist of the "Common Guiding Principles" in the AI Guidelines for Business.	-	Checklist from Appendix 7A of the AI Guidelines for Business, etc.	"Standard Template of Procurement Specification" 8.Matters Regarding Bid Participation 8.1.Acquisition of Official Licenses or Certifications	Ministry of Internal Affairs and Communications and Ministry of Economy, Trade and Industry, "AI Guidelines for Business Ver. 1.2"
	2	Establishment of AI Governance	Basic Requirements	2	AI governance* is applied in developments and operations of generative AI systems. *A control mechanism/operation mechanism to maximize the positive impact of AI, while managing AI-related risks at an acceptable level.	●	●	●	●	●	Consider the goals of AI governance on the process of development and operation of generative AI systems	-	-Documentation explaining the organization's approach and initiatives regarding AI governance. -Rules for development and operation of generative AI systems, etc.	"Standard Template of Procurement Specification" 8.Matters Regarding Bid Participation 8.1.Acquisition of Official Licenses or Certifications	Ministry of Internal Affairs and Communications and Ministry of Economy, Trade and Industry, "AI Guidelines for Business Ver. 1.2"
						●	●	●	●	●	In the development and operation of generative AI systems, deviations from AI governance goals are checked and risk assessments are conducted, followed by corrective actions.	Deviations from AI Governance goals are identified in the development and operation of generative AI systems.	-Documentation explaining the organization's approach and initiatives regarding AI governance. -Rules for development and operation of generative AI systems, etc.		Ministry of Internal Affairs and Communications and Ministry of Economy, Trade and Industry, "AI Guidelines for Business Ver. 1.2"
											Deviations from relevant rules are checked and risks are evaluated in the development and operation of generative AI systems.		-Documentation explaining the organization's approach and initiatives regarding AI governance. -Rules for development and operation of generative AI systems, etc.		Ministry of Internal Affairs and Communications and Ministry of Economy, Trade and Industry, "AI Guidelines for Business Ver. 1.2"
											When identifying deviations from AI governance goals and conducting risk assessments, external stakeholders are participated as necessary.		-Documentation explaining the organization's approach and initiatives regarding AI governance. -Rules for development and operation of generative AI systems, etc.		Ministry of Internal Affairs and Communications and Ministry of Economy, Trade and Industry, "AI Guidelines for Business Ver. 1.2"
						●	●	●	●	●	Ensuring explainability regarding management in the development and operation of generative AI systems.	The status of management in the development and operation of generative AI systems is made explainable to relevant stakeholders to an appropriate and reasonable extent.	-Documentation explaining the organization's approach and initiatives regarding AI governance. -Rules for development and operation of generative AI systems, etc.		Ministry of Internal Affairs and Communications and Ministry of Economy, Trade and Industry, "AI Guidelines for Business Ver. 1.2"
											Implementing initiatives such as the following to enhance explainability in the development and operation of generative AI system: -Recording the implementation status of the processes for evaluating deviations from AI governance goals. -Maintaining records of internal and external meetings related to the development, provision, and use of generative AI systems and services. (Ensure that these records are accessible to stakeholders beyond just those directly involved.) -Conducting internal training sessions on AI.		-Documentation explaining the organization's approach and initiatives regarding AI governance. -Rules for development and operation of generative AI systems, etc.		Ministry of Internal Affairs and Communications and Ministry of Economy, Trade and Industry, "AI Guidelines for Business Ver. 1.2"
											Defining the following matters related to the generative AI system, and provide information to users in a timely and appropriate manner: -Proper/improper usage methods, etc. -Information regarding safety, including the technical features of the generative AI system to be provided, mechanisms for ensuring safety, foreseeable risks that may arise from the results of use, and the relevant mitigation measures, etc. -The potential for changes in outputs or programming, due to training, etc. of the generative AI system. -Information regarding the operational status of the generative AI system, causes of malfunctions and their resolution status, example cases of information security incidents and risk cases particular to generative AI systems, etc. -Information on updates made to the generative AI system, including the details and reasons for these updates. -Policies regarding the collection of data for training, training methods, and training implementation framework, etc. -Terms of services and privacy policies. -Setting the intended scope of use as designed by AI developers to prevent harm from unintended provisions/uses not anticipated during development. -Information regarding the operational status of the generative AI system, causes of malfunctions, and their resolution status.		-Documentation provided to users, such as manuals and contracts, etc. as well as materials available on the service provider's website or product brochures, which include the items mentioned in the left . -Documentation explaining the organization's approach and initiatives regarding AI governance. -Rules for development and operation of generative AI systems, etc.		Ministry of Internal Affairs and Communications and Ministry of Economy, Trade and Industry, "AI Guidelines for Business Ver. 1.2"
											Create and use a unique checklist for deviation evaluation (deviation from governance rules) as the basis for checking and recording the implementation status of the deviation evaluation process.		-Documentation explaining the organization's approach and initiatives regarding AI governance. -Rules for development and operation of generative AI systems, etc.		Ministry of Internal Affairs and Communications and Ministry of Economy, Trade and Industry, "AI Guidelines for Business Ver. 1.2"
						●	●	●	●	●	Verifying whether management methods and functions themselves are appropriate in the development and operation of generative AI systems.	Monitor to determine whether management in the development and operation of generative AI systems is functioning appropriately.	-Documentation explaining the organization's approach and initiatives regarding AI governance. -Rules for development and operation of generative AI systems, etc.		Ministry of Internal Affairs and Communications and Ministry of Economy, Trade and Industry, "AI Guidelines for Business Ver. 1.2"
											Make Continuous improvements based on the results of monitoring.		-Documentation explaining the organization's approach and initiatives regarding AI governance. -Rules for development and operation of generative AI systems, etc.		Ministry of Internal Affairs and Communications and Ministry of Economy, Trade and Industry, "AI Guidelines for Business Ver. 1.2"
	3	Understanding of Trends in the AI Industry and Latest Technologies	Basic Requirements	3	Grasping trends in the AI industry and latest technologies to improve quality and explainability in the development and operation of generative AI systems.	●	●	●	●	●	Understanding industry guidelines, laws and regulations, and latest technologies related to the development and operation of generative AI systems.	Refer to initiatives like the "Machine Learning Quality Management Guideline" by the National Institute of Advanced Industrial Science and Technology for standardization efforts.	Industry guidelines and list of technologies referenced.	"Standard Template of Procurement Specification" 8.Matters Regarding Bid Participation 8.1.Acquisition of Official Licenses or Certifications	Ministry of Internal Affairs and Communications and Ministry of Economy, Trade and Industry, "AI Guidelines for Business Ver. 1.2"
											Conduct initiatives such as participation in AI-related study groups and industry associations, understanding latest technologies, and exchanging opinions with experts.	List AI-related study groups and industry associations in which membership is held.		Ministry of Internal Affairs and Communications and Ministry of Economy, Trade and Industry, "AI Guidelines for Business Ver. 1.2"	
	4	Response to Information Security Incidents and Risk Cases Particular to Generative AI Systems	Basic Requirements	4	Having response frameworks and procedures for information security incidents and risk cases particular to generative AI systems (limited to those within the service provider's scope of responsibility), including cooperation responding to users' reports about the incidents in services that your business have developed and is operating.	●	●	●	●	●	Establishing schemes and procedures for responding to information security incidents and Risk Cases Particular to generative AI systems.	Formulate response schemes, policies, and plans for handling information security incidents and risk cases particular to generative AI systems during their development and operation.	-Documentation explaining AI governance rules, etc. (including materials that demonstrate the establishment of schemes and procedures for responding to information security incidents and risk cases particular to generative AI systems).	"Standard Template of Procurement Specification" 6.Compliance Matters in the Execution of Tasks 6.1.Confidentiality and Handling of Materials "Standard Template of Requirement Definition Document" 3.Non-functional Requirements Definition 3.10.Regarding Information Security Matters	-
											Establish in preparation for information security incidents and risk cases particular to generative AI systems, the following schemes in advance: -Setting up a contact reception desk -Assigning responsible officials to projects -Allocating roles among individual personnel -Defining response approaches and processes -Establishing processes for notifying affected stakeholders, etc.		-Documentation explaining AI governance rules, etc. (including materials that demonstrate the establishment of schemes and procedures for responding to information security incidents and risk cases particular to generative AI systems).		-
						●	●	●	●	●	Conducting education and training on responses to information security incidents and Risk Cases Particular to generative AI systems.	Conduct practical rehearsals as necessary regarding the response policies and plans for information security incidents and risk cases particular to generative AI systems, which may arise during the development and operation of generative AI systems.	-Documentation explaining AI governance rules, etc. (including materials about education and training related to responses to information security incidents and risk cases particular to generative AI systems have been conducted).		-
	5	Enhancement of Education/Literacy Regarding Generative AI for Stakeholders	Basic Requirements	5	Taking necessary actions to enhance literacy about generative AI for staff or sections involved in the development and operation of generative AI systems.	●	●	●	●	●	Conducting role-based education and training so that persons engaged in the development and operation of Generative AI can acquire appropriate literacy, including technical knowledge, risks, ethics, etc. related to Generative AI.	-	-Documentation explaining AI governance rules, etc. (including materials about initiatives undertaken to enhance AI literacy through education, training, etc.).	"Standard Template of Procurement Specification" 5.Matters Regarding the Work Execution Structure and Methods 5.2.Requirements for Licenses of Personnel	Ministry of Internal Affairs and Communications and Ministry of Economy, Trade and Industry, "AI Guidelines for Business Ver. 1.2"
Requirements on Development/Implementation Processes	6	Handling of Data	Basic Requirements	6	Properly supervise the handling of inputs, outputs, or processed data within generative AI systems.	●	●	●	●	●	Defining purposes and conditions of use for Inputs, such as prompts and Raw Data for Training, to the extent necessary in light of the purpose of the project.	-	Documentation that clarifies the purposes for which the inputs (such as prompts, raw data for training) are used by the service provider, etc.	"Standard Template of Requirement Definition Document" 3.Non-functional Requirements Definition 3.2.Matters Regarding System Architecture 3.3.Matters Regarding System Scale 3.10.Matters Regarding Information Security	Ministry of Economy, Trade and Industry, "Checklist for Contracts Regarding AI Utilization and Development,"
						●	●	●	●	●	Defining management and security frameworks for Inputs, such as prompts and Raw Data for Training, to the extent necessary in light of the purpose of the project, and taking measures to prevent issues from arising.	-	Documentation that clarifies the policies for the management and security framework of inputs (such as prompts, raw data for training), etc.		Ministry of Economy, Trade and Industry, "Checklist for Contracts Regarding AI Utilization and Development,"
						●	●	●	●	●	Managing retention periods and deletion of Inputs, such as prompts and Raw Data for Training, to the extent necessary in light of the purpose of the project, and taking measures to prevent issues from arising.	-	Documentation that clarifies the management policy for the retention period and deletion of inputs (such as prompts, raw data for training), etc.		Ministry of Economy, Trade and Industry, "Checklist for Contracts Regarding AI Utilization and Development,"
						●	●	●	●	●	Managing external provision of Inputs, such as prompts and Raw Data for Training, to the extent necessary in light of the purpose of the project, after defining obligations to provide them to users of the generative AI system.	-	Documentation that clarifies the obligation to provide inputs (such as prompts, raw data for training) to users, etc.		Ministry of Economy, Trade and Industry, "Checklist for Contracts Regarding AI Utilization and Development,"
						●	●	●	●	●	Managing third-party provision as part of external provision management of Inputs, such as prompts and Raw Data for Training, to the extent necessary in light of the purpose of the project.	-	Documentation that clarifies the management policy regarding the provision of inputs (such as prompts, raw data for training) to third parties, etc.		Ministry of Economy, Trade and Industry, "Checklist for Contracts Regarding AI Utilization and Development,"
						●	●	●	●	●	Managing the use and utilization of Processing Results of Inputs, such as Training Data, intermediate products, and derivative intellectual property, to the extent necessary in light of the purpose of the project.	-	Documentation that clarifies management policies for the use and utilization of input processing results (such as training data, intermediate outputs, derivative intellectual property), etc.		Ministry of Economy, Trade and Industry, "Checklist for Contracts Regarding AI Utilization and Development,"
						●	●	●	●	●	Managing external provision of Processing Results of Inputs, such as Training Data, intermediate products, and derivative intellectual property, to the extent necessary in light of the purpose of the project.	-	Documentation that clarifies the management policy for the external provision of input processing results (such as training data, intermediate outputs, derivative intellectual property), etc.		Ministry of Economy, Trade and Industry, "Checklist for Contracts Regarding AI Utilization and Development,"
						●	●	●	●	●	Implementing appropriate protection measures, such as considering the introduction of data management and restriction functions to manage data access before and throughout training, to the extent necessary in light of the purpose of the project.	-	Documentation that clarifies policies for protective measures for data throughout the pre-training and the entire training process, etc.		Ministry of Economy, Trade and Industry, "Checklist for Contracts Regarding AI Utilization and Development,"

Procurement Check Sheet					Reference of Requirements										
Classification	Evaluation Viewpoints No.	Evaluation Viewpoints	Classification of Items for Evaluation and Selection	Req. No.	Requirements	AI Covered by the Examples of Measures					Examples of Measures	Detailed Examples of Measures	Examples of Supporting Information	(Reference) Correspondence with the "Various Templates" in the "DS-120 Digital Government Promotion Standard Guideline Implementation Guidebook"	(Reference) Materials for the Example of Measures and Detailed Example of Measures
						Input		Output							
						Includes Text	Includes Audio	Includes Text	Includes Images	Includes Audio					
	7	Assurance of Outputs Quality	Basic Requirements	7	Taking proper actions to meet the expected quality standards of generative AI systems. <										

Procurement Check Sheet					Reference of Requirements																	
Classification	Evaluation Viewpoints No.	Evaluation Viewpoints	Classification of Items for Evaluation and Selection	Req. No.	Requirements	AI Covered by the Examples of Measures					Examples of Measures	Detailed Examples of Measures	Examples of Supporting Information	(Reference) Correspondence with the "Various Templates" in the "DS-120 Digital Government Promotion Standard Guideline Implementation Guidebook"	(Reference) Materials for the Example of Measures and Detailed Example of Measures							
						Input		Output														
						Includes Text	Includes Audio	Includes Text	Includes Images	Includes Audio												
	13	Prevention of Misinformation, Disinformation and Manipulation	Basic Requirements	17	Implementing measures to prevent the output of misinformation/disinformation by generative AI systems.	●	●	●	●	●	Verify whether, when the same factual test data is input into a generative AI model different from the model planned to be used in the generative AI system to be procured, outputs semantically similar to those of the generative AI system are produced.	-	Documentation describing the results of inputting the same factual test data into a generative AI model different from the model planned to be used in the generative AI system to be procured, etc.	"Standard Template of Requirement Definition Document" 3.Non-functional Requirements Definition 3.1.Matters Regarding Usability and Accessibility	AISIL "Guide to Evaluation Perspectives on AI Safety (Version 1.10)"							
						●	●	●	●	●	Confirm that there are no issues with scores for evaluation items related to prevention of misinformation and disinformation output.	Measure and evaluate scores related to the relevance between prompts and output data for the generative AI system.	Documentation that clarifies the scores related to the relevance between prompts and output data in generative AI systems, along with the methods for measuring these scores, etc.									
											Measure and evaluate scores related to the relevance between output data from the generative AI system and search results from RAG. *This item applies only to generative AI systems using RAG.	Documentation that clarifies the scores related to the relevance between output data from generative AI systems and search results produced by RAG, along with the methods for measuring these scores, etc.										
											Measure and evaluate scores related to the consistency between output data from the generative AI system and search results from RAG. *This item applies only to generative AI systems using RAG.	Documentation that clarifies the scores related to the consistency between output data from generative AI systems and search results produced by RAG, along with the methods for measuring these scores, etc.										
											Measure and evaluate scores related to semantic consistency between correct-answer data and search results from RAG. *This item applies only to generative AI systems using RAG.	Documentation that clarifies the scores related to the semantic consistency between correct data and search results produced by RAG, along with the methods for measuring these scores, etc.										
											Equip mechanisms to ensure that content authentication is appropriately performed even when various prompts are input into a generative AI system for which content authentication is applied to outputs.	Documentation that clarifies the implementation methods for mechanisms ensuring appropriate content authentication for various prompts input into generative AI systems, etc.										
											Confirm whether documents to be searched by a generative AI system using RAG and correct-answer data prepared by evaluators for evaluation are fact-based data. *This item applies only to generative AI systems using RAG.	Records confirming that documents targeted for search in generative AI systems using RAG or the correct data prepared by evaluators for evaluation are fact-based data, etc.										
			Applicable as Basic Requirements when used outside of ministries or agencies by a large, unspecified number of external users, such as the general public.	18	Ensuring that end users can distinguish the output of generative AI systems from information output by humans.	●	●	●	●	●	Equip mechanisms that enable users to distinguish outputs from the generative AI system from information issued by humans.	-	Documentation that clarifies the implementation mechanisms for users to distinguish outputs by generative AI systems from information output by humans, etc.	"Standard Template of Requirement Definition Document" 3.Non-functional Requirements Definition 3.1.Matters Regarding Usability and Accessibility	AISIL "Guide to Evaluation Perspectives on AI Safety (Version 1.10)"							
						Applicable as Basic Requirements when used outside of ministries or agencies by a large, unspecified number of external users, such as the general public.	19	Implementing controls, etc. to prevent the generative AI system from unduly inducing users' decision-making.	●	●	●	●	●			Measures are in place to prevent users from being induced into actions that may lead to subjective or objective disadvantages, based on recommendations or instructions from the generative AI system.	-	Documentation that clarifies the methods for verifying that outputs from generative AI systems do not induce users into actions that may lead to subjective or objective disadvantages due to the systems' recommendations or instructions, etc.				
									●	●	●	●	●			Equip mechanisms by which opt-in or opt-out means for inducement by the generative AI system, such as generation of messages including URL links, are included in the output of the generative AI system.	-	Documentation that clarifies the implementation methods for mechanisms to include opt-in or opt-out options regarding inducement by generative AI systems in their outputs, etc.				
					Fairness and Inclusion	Applicable as Basic Requirements when used outside of ministries or agencies by a large, unspecified number of external users, such as the general public.	20	Restricting the output of harmful bias and unjust discrimination.	●	●	●	●	●	Equip mechanisms for the generative AI system to refuse to respond when test data containing harmful biases regarding specific groups (such as race, gender, nationality, age, political beliefs, religion, etc.) is input or included in expected outputs.	-	Documentation that clarifies the implementation methods for mechanisms that enable the generative AI system to refuse to respond when test data containing harmful biases against specific groups (related to diverse backgrounds such as race, gender, nationality, age, political beliefs, religion, etc.) is input or included in expected outputs, etc.	"Standard Template of Requirement Definition Document" 3.Non-functional Requirements Definition 3.1.Matters Regarding Usability and Accessibility	Example of Measures: AISIL "Guide to Evaluation Perspectives on AI Safety (Version 1.10)" Detailed Example of Measures: National Institute of Advanced Industrial Science and Technology, "Generative AI Quality Management Guideline, 1st Edition"				
									●	●	●	●	●	Measures are in place to ensure that output results are not influenced by attributes when test data, which is presumed to be unaffected by human attributes, is input into the system.	Introduce filtering functions for output content and designing them to prevent outputs that undermine safety, unexpected leakage of personal data, outputs corresponding to infringement of copyright owners' rights, or unexpected bias.	Documentation that clarifies the testing policies used to verify that output results are not influenced by attributes when test data, presumed to be unaffected by human attributes, is input into the system, etc.						
									●	●	●	●	●	Use multiple generative AI models, considering that different generative AI models may have varying ideologies or biases, especially when the primary purpose is not the use of a specific model.	-	Documentation that clarifies the adoption of system design using multiple generative AI models, etc.						
									●	●	●	●	●	Verify whether the generative AI system has unfair bias in training data or in the model training process. Also organizing and providing information on the possibility that the generative AI model may be subject to output restrictions in specific fields based on laws and regulations, etc.	Select appropriate Generative AI based on whether bias or output restrictions would impede the intended purpose of use.	Documentation that clarifies the verification process and verification methods for the generative AI system; regulations on AI in the country where the company providing the generative AI model is located; evaluation results regarding bias in generation results of the relevant generative AI model, etc.						
									●	●	●	●	●	Periodically monitor output results to check whether they contain harmful bias.	-	Documentation that clarifies the verification viewpoints used for regular monitoring to ensure that harmful biases are not included, etc.						
									●	●		●		Equip mechanisms capable of generating outputs without bias relating to personal attributes, such as gender, age, or race, when generation of images of persons relating to specific categories, such as occupations, is requested.	-	Documentation that clarifies how mechanisms are implemented to generate outputs without bias relating to personal attributes when generation of images of persons relating to specific categories is requested, etc.						
									Basic Requirements	21	Taking measures to ensure that outputs are easy for all users to understand.	●	●	●	●	●		Measure and evaluate a fluency score for the output of the generative AI system, meaning a numerical representation of whether the output is grammatically appropriate.	-	Documentation that clarifies the fluency score of generative AI system outputs and the measurement policies for the score, etc.	"Standard Template of Requirement Definition Document" 3.Non-functional Requirements Definition 3.1.Matters Regarding Usability and Accessibility	AISIL "Guide to Evaluation Perspectives on AI Safety (Version 1.10)"
												●	●	●	●	●		Measure and evaluate scores relating to the readability of the output of the generative AI system.	-	Documentation that clarifies the readability score of generative AI system outputs and the measurement policies for the score, etc.		
												●	●	●	●	●		Measures are in place to ensure that, even when grammatically incorrect test data is input into the generative AI system, the output remains grammatically correct and easily understandable by humans.	-	Documentation that clarifies the methods for verifying that the output remains grammatically correct and easily understandable by humans, even when grammatically incorrect test data is input into the generative AI system, etc.		
	15	Addressing Uses for Purpose Other than the Original Intent							Basic Requirements	22	Preventing use for purposes other than the intended purpose, and implementing input and output restrictions, etc. so that harm or disadvantage is less likely to occur even if such unintended use occurs.	●	●	●	●	●		Equip mechanisms to ensure that, even when test data assuming outputs outside the expected use cases is input into the generative AI system, outputs that cause harm to users' life, body, property, etc. or various rights are not produced, or the system can refuse to output them.	-	Documentation that clarifies the implementation methods for mechanisms to ensure that even when test data anticipating outputs other than expected use cases is input into the generative AI system, outputs that may harm the life, body, property, etc. of the user are prevented, or the system can refuse to output such results, etc.	"Standard Template of Requirement Definition Document" 3.Non-functional Requirements Definition 3.10.Matters Regarding Information Security	AISIL "Guide to Evaluation Perspectives on AI Safety (Version 1.10)"
												●	●	●	●	●		Equip mechanisms to ensure that, within the expected scope of purpose of use of the generative AI system, outputs that cause harm to users' life, body, property, etc. or various rights are not produced, or the system can refuse to output them.	-	Documentation that clarifies the implementation methods for mechanisms to ensure that within the intended purpose of use cases for the generative AI system, outputs that may harm the life, body, property, etc. of the user are prevented, or the system can refuse to output such results, etc.		
												●	●	●	●	●		Define and periodically update methods of use, usage precautions, assumed use environments, guidelines, etc. for the generative AI system so that users can use the system safely and appropriately.	-	Documentation that outlines the generative AI system's usage methods, points of consideration for use, expected usage environment, etc.		

Procurement Check Sheet					Reference of Requirements													
Classification	Evaluation Viewpoints No.	Evaluation Viewpoints	Classification of Items for Evaluation and Selection	Req. No.	Requirements	AI Covered by the Examples of Measures					Examples of Measures	Detailed Examples of Measures	Examples of Supporting Information	(Reference) Correspondence with the "Various Templates" in the "DS-120 Digital Government Promotion Standard Guideline Implementation Guidebook"	(Reference) Materials for the Example of Measures and Detailed Example of Measures			
						Input		Output										
						Includes Text	Includes Audio	Includes Text	Includes Images	Includes Audio								
	16	Personal Information, Privacy, Intellectual Property	Applicable as Basic Requirements when handling personal information or where privacy protection is necessary	23	Taking measures to ensure the appropriate handling of personal information and the protection of privacy in the generative AI system.	●	●	●	●	●	When using a generative AI system using RAG, and where information concerning individuals is included in the destinations searched by RAG, having mechanisms capable of controlling inappropriate output of personal information. *This item applies only to generative AI systems using RAG.		Documentation that clarifies the implementation methods for mechanisms to properly control the inappropriate output of personal information when using a generative AI system with RAG and the search target includes information related to individuals, etc.	"Standard Template of Procurement Specification" 6.Compliance Matters in the Execution of Tasks 6.3.Handling of Personal Information, etc. "Standard Template of Requirement Definition Document" 3.1.Non-functional Requirements Definition 3.1.Matters Regarding Usability and Accessibility	AISJ, "Guide to Evaluation Perspectives on AI Safety (Version 1.10)"			
						●	●	●	●	●	Establish procedures for addressing situations where privacy infringements are recognized.		Documentation that clarifies the procedures for addressing situations where privacy infringements are recognized, etc.					
						●	●	●	●	●	Collect data from users in compliance with the Act on the Protection of Personal Information.		Documentation that shows compliance with the Act on Protection of Personal Information (including rules, regulations, and records of their implementation status).					
						●	●	●	●	●	Particularly when used by external persons such as citizens and where personal information, etc. may be input, ensuring, in principle, that user input information is used only to generate responses to the relevant user.		Documentation that clarifies how mechanisms are implemented to ensure, in principle, that user input information is used only to generate responses to the relevant user where personal information, etc. may be input, etc.					
						●	●	●	●	●	When handling personal data including personal information in a generative AI system, taking appropriate processing and other measures to protect the data.		Documentation that clarifies how appropriate processing and other measures taken to protect the data are implemented when handling personal data including personal information in a generative AI system, etc.					
						●	●	●	●	●	Equip the generative AI system with mechanisms to prevent infringement of Intellectual property rights, etc.		Documentation that clarifies how measures to protect Intellectual property rights, etc., such as filtering, are implemented.					
		24	Applicable as Basic Requirements when handling intellectual property, etc. in a generative AI system *The main anticipated scenarios are: ① use of copyrighted works ② use of registered designs or registered trademarks, or another person's product indications or product configurations ③ use of a person's likeness ④ use of a person's voice	Measures are taken to ensure the protection of Intellectual property rights, rights of likeness, and publicity rights at the generation stage.	●	●	●	●	●				"Standard Template of Requirement Definition Document" 3.Non-functional Requirements Definition 3.1.Matters Regarding Usability and Accessibility	Ministry of Economy, Trade and Industry, "Guidebook on the Utilization of Generative AI for Content Production" (Japanese version) With respect to the protection of likenesses and voices, relevant concepts have been organized based on the Unfair Competition Prevention Act and judicial precedents. Ministry of Economy, Trade and Industry, 2025, "Organization of Concepts under the Current Unfair Competition Prevention Act Concerning the Publicity Value of Likenesses and Voices" (Japanese version) https://www.meti.go.jp/policy/economy/chiza/chiteki/pdf/shazo_koe.pdf				
					25	Applicable as Basic Requirements when training a generative AI model in planning or development.	Measures are taken to ensure the protection of Intellectual property rights, etc. at the training stage.	●	●	●	●	●	Take measures to ensure that appropriate data is used for training in order to prevent infringement of Intellectual property rights, etc.		Where training data is provided by an external party, the contract or terms of use with the relevant data provider may restrict the use of the provided data as training data for Generative AI. Because using such data as training data without permission may constitute a breach of the contract or terms of use, the contract or terms of use should be reviewed to check whether there are any restrictions on data use and, if so, the content of such restrictions.	Documentation that clarifies the policy for actions to be taken when conducting training in light of the contract or terms of use with the data provider, etc.	"Standard Template of Requirement Definition Document" 2.Functional Requirements Definition 2.4.Matters Regarding Data 3.Non-functional Requirements Definition 3.12.Matters Regarding Data Management	Ministry of Economy, Trade and Industry, "Guidebook on the Utilization of Generative AI for Content Production" (Japanese version) Agency for Cultural Affairs, "Checklist & Guidance on AI and Copyright" (Japanese version) Agency for Cultural Affairs, "Checklist & Guidance on AI and Copyright" (Japanese version) Ministry of Economy, Trade and Industry, "Guidebook on the Utilization of Generative AI for Content Production" (Japanese version)
								Do not adopt training methods that cause training data to be output as-is.	Documentation that clarifies how training methods that do not cause training data to be output as-is are implemented, etc.									
								If collecting or using, as training data, copyrighted works or other materials for which one does not hold rights and which are protected by copyright, confirm whether such collection or use is conducted either: ① with permission from the rights holder, such as through the execution of a contract or ② without the rights holder's permission under Article 30-4 of the Copyright Act. In the case of ②, confirm whether the collection or use as training data satisfies the requirement that the use is not for a purpose through which a person can enjoy the benefit of intellectual property under that Article, and whether it does not fall under a case that would "unreasonably prejudice the interests of the copyright owner." In addition, limit the use to purposes through which no person can enjoy the benefit of intellectual property; do not engage in use for purposes through which a person can enjoy the benefit of intellectual property, or use that would be evaluated as involving both purposes through which a person can enjoy the benefit of intellectual property and purposes through which no person can enjoy the benefit of intellectual property; and do not engage in any use that would fall under a case that would unreasonably prejudice the interests of the copyright owner. With respect to ①, possible initiatives include, for example: -Using, as training data, data for which rights clearance has been completed, such as by obtaining permission from the copyright owner or entering into a license agreement. With respect to ②, possible initiatives to avoid falling under a case that would unreasonably prejudice the interests of the copyright owner include, for example: -Respecting technical measures that restrict the collection of AI training data, such as access restrictions using ID/password authentication or restrictions using "robots.txt."	Documentation that clarifies the status of confirmation of permission from rights holders in connection with the collection or use of training data, etc., and the policy for collection or use of training data, etc., and how mechanisms are implemented to ensure that the training data is used only for non-enjoyment purposes.									
17	Ensuring Security	Basic Requirements	26	Addressing vulnerabilities across the entire generative AI system and taking measures to prevent impacts caused by unauthorized manipulation.	●	●	●	●	●	Measures are in place to ensure security across the entire generative AI system.	As attack methods targeting generative AI systems evolve constantly, mechanisms are under review and development to address these risks. Such mechanisms can be implemented necessary.	Documentation related to measures against the latest attack methods, etc.	"Standard Template of Requirement Definition Document" 3.Non-functional Requirements Definition 3.4.Matters Regarding Performance 3.5.Matters Regarding Reliability 3.10.Matters Regarding Information Security	AISJ, "Guide to Evaluation Perspectives on AI Safety (Version 1.10)"				
					●	●	●	●	●	Conducting post-training on safety standards so that the generative AI model does not produce unintended outputs.	Documentation that clarifies the development policy and methods for conducting post-training on safety standards so that the generative AI model does not produce unintended outputs, etc.							
					●	●	●	●	●	Defining the priority of instructions to be followed by the generative AI model and conducting post-training so that the model always gives priority to processing higher-priority instructions, such as system prompts.	Documentation that clarifies the development policy and methods for defining the priority of instructions to be followed by the generative AI model and ensuring that the model always gives priority to processing higher-priority instructions, etc.							
					●	●	●	●	●	Measures are in place to ensure that there are no deficiencies in access control, etc. for the orchestrator in order to prevent unintended behavior of the generative AI system. By limiting the access rights granted to the orchestrator that operates the generative AI model and connected systems to the minimum necessary level, the potential spread of damage can be mitigated when the generative AI model is attacked.	Documentation that clarifies the method for verifying that there are no deficiencies in access control, etc. for the orchestrator that operates the generative AI model and connected systems, etc.							
					●	●	●	●	●	When input confidential information is referenced or used for training, establishing mechanisms so that the input confidential information is not used to generate responses for persons who are not authorized.	Documentation that clarifies how mechanisms are implemented so that, when input confidential information is referenced or used for training, the input confidential information is not used to generate responses for persons who are not authorized, etc.							
					●	●	●	●	●	Measures are in place to provide defensive measures before the input to the generative AI model, such as detecting harmful prompt content before it is input to the model. For example, the following measures may be taken: -Detecting prompts using prohibited lists. -Verifying whether prompts contain input that encourages the execution or generation of code that may lead to harmful results, or instructions that cause outputs unintended in light of the purpose of use of the generative AI system. If such input is detected, measures are taken, such as neutralizing the prompt by deleting part of it or rejecting the processing. -Measures are in place to prevent unintended operations from being performed through prompt injection or similar attacks on the back-end systems of the generative AI system. -Measures are in place to ensure that the defensive measures implemented in the generative AI system cannot be bypassed through prompt injection or similar attacks.	Documentation that clarifies the implementation policy for defensive measures before input to the generative AI model, such as detecting harmful prompt content before it is input to the model, etc.							
					●	●	●	●	●	Measures are in place to ensure that even when multiple test data, which are costly and challenging to process, are repeatedly input into the generative AI system, unacceptable performance degradation or system shutdown does not occur.	Documentation that clarifies the methods for verifying that even when multiple test data, which are costly and challenging to process, are repeatedly input into the generative AI system, unacceptable performance degradation or system shutdown does not occur, etc.							
					●	●	●	●	●	Introducing rate limits to mitigate attacks involving massive access to the generative AI system.	Documentation that clarifies the implementation method for the rate-limiting mechanism of the generative AI system, etc.							
					●	●	●	●	●	Measures are in place to ensure security regarding prompt input to generative AI models (system prompts).	Design system prompts to invalidate user inputs that instruct the generative AI model to ignore system prompts and follow only user inputs, i.e., attempts at jailbreaking, etc.	Documentation that clarifies how mechanisms to invalidate user inputs attempting jailbreaking are implemented, etc.						
					●	●	●	●	●	Control the system according to the purpose and use of the generative AI system by authenticating users and rejecting use by users who fail authentication, so that the provenance of user input prompts becomes clear.	Documentation that clarifies how mechanisms are implemented to authenticate users and reject use by users who fail authentication so that the provenance of user input prompts becomes clear, etc.							
					●	●	●	●	●	Measures are in place to ensure security regarding prompt input to generative AI models (system prompts).	Setting restrictions, security precautions, etc. in system prompts so that generative AI models do not produce unintended outputs.	Documentation that clarifies the implementation method for technologies that provide a mechanism to prevent the generative AI model from producing unintended outputs by setting restrictions, security precautions, etc. in system prompts, etc.						
					●	●	●	●	●	Avoiding directly describing confidential information, etc. that is not intended to be output, such as API keys, in system prompts, and managing such information separately so that generative AI models can refer to it as necessary.	Documentation that clarifies the policy for measures to avoid directly describing confidential information, etc. that is not intended to be output, such as API keys, in system prompts, and to manage such information separately so that the generative AI model can refer to it as necessary, etc.							

Requirement Check Sheet					Reference of Requirements											
Classification	Evaluation Viewpoints No.	Evaluation Viewpoints	Classification of Items for Evaluation and Selection	Req. No.	Requirements	AI Covered by the Examples of Measures					Examples of Measures	Detailed Examples of Measures	Examples of Supporting Information	(Reference) Correspondence with the "Various Templates" in the "DS-120 Digital Government Promotion Standard Guideline Implementation Guidebook"	(Reference) Materials for the Example of Measures and Detailed Example of Measures	
						Input		Output								
						Includes Text	Includes Audio	Includes Text	Includes Images	Includes Audio						
								</								

Procurement Check Sheet					Reference of Requirements										
Classification	Evaluation Viewpoints No.	Evaluation Viewpoints	Classification of Items for Evaluation and Selection	Req. No.	Requirements	AI Covered by the Examples of Measures					Note: Examples of methodologies for complying with the "Requirements" are provided. It is not necessary to strictly adhere to the example of measures. Based on selection, the planner needs to incorporate only the necessary details of the requirements into the procurement specification.	Note: Consider whether to request provision of the supporting information from the service provider as necessary.	(Reference) Correspondence with the "Various Templates" in the "DS-120 Digital Government Promotion Standard Guideline Implementation Guidebook"	(Reference) Materials for the Example of Measures and Detailed Example of Measures	
						Input		Output							Examples of Measures
						Includes Text	Includes Audio	Includes Text	Includes Images	Includes Audio					
	20	Data Quality	Basic Requirements	31	Taking measures to maintain data accessed by generative AI systems in an appropriate state.	●	●	●	●	●	Measures are in place to ensure that quality issues do not arise in data (including pre-training data, training data and test data for purposes such as fine-tuning and In-Context Learning, etc.) that could negatively affect the generative AI system, taking into account the possibility of biases (including latent biases not evident in training data) being included during the learning process of both data and models.	As part of quality management for data that affects generative AI systems, such as pre-training data, training data for fine-tuning or In-Context Learning, and test data, manage data accuracy and take measures to prevent issues from arising in the data.	Documentation that clarifies the methods for managing the accuracy, confidentiality, and integrity of pre-training data, training data and test data for purposes such as fine-tuning and In-Context Learning, etc., as part of quality management for data that could affect generative AI systems, etc.	"Standard Template of Procurement Specification" 4.Matters Regarding the Content of Task Execution 4.13.Data Management Method "Standard Template of Requirement Definition Document" 2.Functional Requirements Definition 2.4.Matters Regarding Data	AISI, "Guide to Evaluation Perspectives on AI Safety (Version 1.10)"
						As part of quality management for data that affects the generative AI system, such as pre-training data, training data for fine-tuning or In-Context Learning, and test data, manage to prevent data corruption and take measures to prevent issues from arising in the data.	Documentation that clarifies the methods for managing the accuracy, confidentiality, and integrity of pre-training data, training data and test data for purposes such as fine-tuning and In-Context Learning, etc., as part of quality management for data that could affect generative AI systems, etc.	AISI, "Guide to Evaluation Perspectives on AI Safety (Version 1.10)"							
						Take measures to ensure that data that affects the generative AI system, such as pre-training data, training data for fine-tuning or In-Context Learning, and test data, is grammatically appropriate and easy for humans to understand.	Documentation that clarifies the methods for verifying that pre-training data, training data and test data for purposes such as fine-tuning and In-Context Learning, etc., which could affect generative AI systems, are grammatically appropriate and easily understandable by humans, etc.	AISI, "Guide to Evaluation Perspectives on AI Safety (Version 1.10)"							
						Take measures to ensure that the distribution of data that affects the generative AI system, such as pre-training data, training data for fine-tuning or In-Context Learning, and test data, is not biased by race, gender, nationality, age, political beliefs, religion, etc.	Documentation that clarifies the methods for verifying that pre-training data, training data and test data for purposes such as fine-tuning and In-Context Learning, etc., which could affect generative AI systems, are free from biases in their distribution related to race, gender, nationality, age, political beliefs, religion, etc.	AISI, "Guide to Evaluation Perspectives on AI Safety (Version 1.10)"							
						Take measures to ensure that data that affects the generative AI system, such as pre-training data, training data for fine-tuning or In-Context Learning, and test data, does not contain offensive words or other inappropriate content directed at users.	Documentation that clarifies the methods for verifying that pre-training data, training data and test data for purposes such as fine-tuning and In-Context Learning, etc., which could affect generative AI systems, do not contain inappropriate content, such as offensive language towards users, etc.	AISI, "Guide to Evaluation Perspectives on AI Safety (Version 1.10)"							
						Take measures to ensure that data that affects the generative AI system, such as pre-training data, training data for fine-tuning or In-Context Learning, and test data, does not contain information that could be used for cyberattacks or terrorism, etc.	Documentation that clarifies the methods for verifying that pre-training data, training data and test data for purposes such as fine-tuning and In-Context Learning, etc., which could affect generative AI systems, do not contain information that could be used for cyber attacks or terrorism, etc.	AISI, "Guide to Evaluation Perspectives on AI Safety (Version 1.10)"							
						Confirm whether data that affects the generative AI system, such as pre-training data, training data for fine-tuning or In-Context Learning, and test data, is in a state suitable for use as training data by applying measures such as PETs (Privacy-Enhancing Technologies).	Documentation that clarifies the methods for verifying that pre-training data, training data and test data for purposes such as fine-tuning and In-Context Learning, etc., which could affect generative AI systems, are appropriately processed with measures like Privacy-Enhancing Technologies (PETs) etc., to ensure they are suitable for use as training data, etc.	AISI, "Guide to Evaluation Perspectives on AI Safety (Version 1.10)"							
						As part of quality management for data that affects the generative AI system, such as pre-training data, training data for fine-tuning or In-Context Learning, and test data, manage data configurations and take measures to prevent issues from arising in the data.	Documentation that clarifies the methods for verifying that automated annotation is being conducted appropriately, as part of the quality management for pre-training data, training data and test data for purposes such as fine-tuning and In-Context Learning, etc., that could affect generative AI systems, etc.	AISI, "Guide to Evaluation Perspectives on AI Safety (Version 1.10)"							
						As part of quality management for data that affects the generative AI system, such as pre-training data, training data for fine-tuning or In-Context Learning, and test data, take measures to ensure that automated annotation, if used, is performed appropriately.	Documentation that clarifies the methods for verifying that malicious or malfunction-inducing programs are not included in the data, etc., as part of the quality management for pre-training data, training data and test data for purposes such as fine-tuning and In-Context Learning, etc., that could affect generative AI systems, etc.	AISI, "Guide to Evaluation Perspectives on AI Safety (Version 1.10)"							
						As part of quality management for data that affects the generative AI system, such as pre-training data, training data for fine-tuning or In-Context Learning, and test data, take measures to ensure that malicious text, programs, or other content that could cause malfunctions is not included in the data.	Documentation that clarifies the methods for verifying that malicious or malfunction-inducing programs are not included in the data, etc., as part of the quality management for pre-training data, training data and test data for purposes such as fine-tuning and In-Context Learning, etc., that could affect generative AI systems, etc.	AISI, "Guide to Evaluation Perspectives on AI Safety (Version 1.10)"							
											As part of quality management for data that affects the generative AI system, such as pre-training data, training data for fine-tuning or In-Context Learning, and test data, manage data provenance using tools, etc. and take measures to prevent issues from arising in the data.	Documentation that clarifies the methods for managing the provenance, as part of the quality management for pre-training data, training data and test data for purposes such as fine-tuning and In-Context Learning, etc., that could affect generative AI systems, etc.	AISI, "Guide to Evaluation Perspectives on AI Safety (Version 1.10)"		
												Verify whether the quantity and quality of training data are sufficient and quality of training has reached a practical level.	-	Documentation that clarifies the verification process and verification methods for whether the quantity and quality of training data are sufficient and whether training has reached a practical level, etc.	AISI, "Guide to Evaluation Perspectives on AI Safety (Version 1.10)"
												Having technology to apply data processing, such as data anonymization, that provides the expected level of protection for data containing sensitive information, and selecting the method of data anonymization based on consistency with the purpose of data use.	-	-	National Institute of Advanced Industrial Science and Technology, "Generative AI Quality Management Guideline, 1st Edition"
			Optional Additional Requirements (Optional Criteria)	32	Structuring input data appropriately to enhance the outputs of generative AI systems.	●	●	●	●	●	Consider and implement, as necessary, structuring of input data for the purpose of improving output accuracy.	-	Documentation explaining the methods and related materials for achieving the structuring of input data aimed at improving the accuracy of output, etc.	"Standard Template of Requirement Definition Document" 2.Functional Requirements Definition 2.4.Matters Regarding Data	-
	21	Verifiability	Basic Requirements	33	Making the development and provision processes of generative AI systems verifiable.	●	●	●	●	●	Management are in place to ensure that the overview, origins, and operations of the system, model, and data can be verified from logs and technical specifications, etc., along with measures to be implemented to prevent related issues.	Create system cards, model cards, and data cards and manage to ensure the verifiability of the overview, origins, and operations of the system, model, and data, with measures implemented to prevent related issues.	Documentation explaining the technical specifications, management policies, and other related materials to clarify the overview, origin, and operation of systems, models, and data, for ensuring their verifiability, etc.	"Standard Template of Requirement Definition Document" 3.Non-functional Requirements Definition 3.16.Matters Regarding Operations 3.17.Matters Regarding Maintenance	AISI, "Guide to Evaluation Perspectives on AI Safety (Version 1.10)"
						Take measures ensure that data logs are accurately recorded when various test data are input into the generative AI system, thus securing the verifiability of the overview, origins, and operations related to the system, model, and data.	Documentation explaining the verification methods and related approaches to ensure data logs are recorded correctly when various test data are input into generative AI systems, etc.	AISI, "Guide to Evaluation Perspectives on AI Safety (Version 1.10)"							

Appendix7 A

Checklist [For all AI business actor]

2026.3.31

This checklist summarizes "Part 2 [C. Common Guiding Principles](#)" from AI Guidelines for business.
Use this checklist to review the key initiatives required of business operators.

Checklist Items

- ☐ Based on [Human-Centric approach](#), act in a way that does not violate the human rights guaranteed by the Constitution of Japan or granted internationally.
- ☐ Ensure [safety](#) to avoid damage to the lives, bodies, minds, properties of all persons engaged in AI, and the environment.
- ☐ Take care to eliminate potential biases, recognize that there are some unavoidable biases even if such attention is paid, and determine whether the unavoidable biases are allowable from the [fairness](#) viewpoints of respect for human rights and diverse cultures.
- ☐ Respect and protect [privacy](#), and obey relevant laws.
- ☐ Ensure [security](#) to prevent the behaviors of AI from being unintentionally altered or stopped by unauthorized manipulations.
- ☐ To ensure [transparency](#), provide stakeholders with information of AI itself and AI system or service to the extent reasonable and technically possible.
- ☐ Execute [accountability](#) regarding the traceability of data sources and AI decision-making as well as the status of risk response, to concerned stakeholders.
- ☐ Establish [the policies relevant to privacy and AI governance](#).
- ☐ [Consider specific approaches](#) tailored to the circumstances of each business to achieve the above checklist items.

This check sheet organizes the terms that should be considered for inclusion in contracts when procuring generative AI systems. (As appropriate, these terms should be incorporated into procurement specifications.)

Planners should refer to this check sheet when creating contracts and procurement specifications for the procurement of generative AI systems.

However, this check sheet only includes terms particular to the "procurement of generative AI systems" that require particular attention. Therefore, it is necessary to also refer to documents such as contract templates of each ministry or agency when creating the contract. In this check sheet, "[Appendix 4] Contract Check Sheet (for Generative AI Systems)" is referred to as the "Contract Check Sheet."

Budget Planning Stage

Planning of Procurement

Evaluation/ Selection

Public Notice/ Examination

Contract

Acceptance Inspection

1. Preparation of Contracts and Related Documents

- Planners prepare contracts and related documents
- Refer to the "Digital Government Promotion Standard Guidelines" to ensure that the requirements expected of service providers are clearly specified in documents such as the "Requirements Definition Document" and "Procurement Specifications" when procuring government information systems
- Additionally, incorporate the terms that must be stipulated as contract clauses in contracts and related documents when procuring generative AI systems should be incorporated by referring to this document

Requirements for service providers when procuring government information systems

Contract Template*

Terms to include in contracts when procuring generative AI systems

Contract Check Sheet This Document

Contracts and related documents

*Refer to the Digital Agency website for the "Contract Template"

2. Contract with the Service Provider

- Planners make a contract with service providers

*In principle, the contracted service provider is responsible for necessary information disclosure and provision. However, if the service provider, as the contracting party, is not able to obtain information disclosure or provision from a third party due to business circumstances, it is also possible to stipulate in the contract with the service provider that information can be directly shared with government staff by the third party.

Request of Confirmation

Contract

Procurement Specification

Requirement Definition Document

Filling Out the Contract

Contract

Planner

Service Provider

Structure of this Check Sheet

Item No.	Classification of Items for Contracts	Contractual Matters	Example Clauses to be Included in the Contract	Supplementary Explanations
		In this Contract Check Sheet, the term "users" refers to government staff involved in the use of generative AI systems (in principle, "Planners," "Developers," "Providers," and "Users") and external users.		
1	Basic Terms	Agreements Regarding Inputs Related to Generative AI Systems	Clauses stipulating the definition of inputs, purposes of input uses, conditions for input uses, ownership of rights related to inputs.	The following considerations are advisable when stipulating the clauses. Define the scope of inputs subject to contractual rules as service providers might freely use inputs without restrictions. Stipulate obligations prohibiting service providers from using or retaining inputs, in principle, for purposes other than those related to the provision of the generative AI system. When granting permission for service providers to use inputs, set clear conditions for such usage (i.e. whether training is involved, what the methods of data storage are). Stipulate the conditions for the acquisition of rights under which service providers may acquire certain rights, such as intellectual property rights relating to inputs. The conditions should include matters such as the scope of rights transfer of the inputs, presence or absence of consideration of the rights, and the existence and terms of licensing the inputs, and any other relevant matters.
2	Basic Terms	Agreements Regarding Results of Processing Inputs Related to Generative AI Systems	Clauses regarding results of inputs (other than outputs), which stipulate the scope of the results covered by contractual rules, purposes of using the results, conditions for using the results, and ownership of rights of the results.	The following considerations are advisable when stipulating the clauses. Define the scope of results of processing inputs subject to contractual rules as service providers might freely use them without restrictions. Stipulate obligations prohibiting service providers from using or retaining results of processing inputs, in principle, for purposes other than those related to the provision of the generative AI system. When granting permission for service providers to use results of processing inputs, set clear conditions for such usage (i.e. whether training is involved, what the methods of data storage are). Stipulate the conditions of the acquisition of rights under which service providers may acquire certain rights, such as intellectual property rights, relating to results of processing inputs, which should address matters such as the scope of rights transfer, presence or absence of consideration of the rights, existence and terms of licensing the rights, and any other relevant conditions. *When RAG is included as a component, the database is generally treated as a deliverable. However, it is advisable to consider whether related parsers (programs that convert data into text data for RAG), text-splitting programs, vector conversion programs, etc. should also be included in the deliverables, or whether their functions should be provided through Web APIs, etc., and to incorporate their ownership of rights and methods of use into the contract.
3	Basic Terms	Agreements Regarding Outputs Related to Generative AI Systems	Clauses stipulating the definition of outputs, whether the service provider has the obligation to provide outputs to users and the details of the obligation, requirements for warranties from the service provider related to outputs, conditions under which users may provide outputs to third parties, and the ownership of rights regarding outputs that the service provider supplies to users.	The following considerations are advisable when stipulating the clauses. As for outputs subject to contractual rules, define the scope of outputs in a way that fully covers the user's purposes for service use. If the service provider is obligated to provide outputs, define the conditions for the provisions, including timing, frequency, state, and other conditions, as well as the details of the outputs provided, such as their nature, quantity, and granularity, in light of the user's purposes for service use. In cases where the service provider is responsible for warranties or information provision regarding outputs, set the terms and conditions for such warranties and information provision. Define third-party provision conditions, including the recipients, scope of provision, and other related conditions. Stipulate the conditions for the acquisition of rights under which users may acquire certain rights, such as intellectual property rights, relating to the outputs. The conditions should address the scope of rights transfer, presence or absence of consideration of the rights, existence and terms of licensing the rights, and any other relevant matters.
4	Basic Terms	Agreements Regarding Results of Processing Outputs Related to Generative AI Systems	Clauses regarding results of processing outputs, which stipulate the scope of the results covered by contractual rules, external provision of the results by users, and ownership of rights of the results.	The following considerations are advisable when stipulating the clauses. For the results of processing outputs subject to contractual rules, define the scope of these results in a way that fully covers the user's purposes for service uses. Define external provision conditions, including the recipients of the results, scope of the provision of the results, and other relevant conditions, in light of the user's purposes for service uses. When acquiring certain rights, such as intellectual property rights, stipulate the conditions of the acquisition of the rights, including the scope of rights transfer, presence or absence of consideration of the rights, and the existence and terms of licensing the rights, and any other relevant conditions.

Column B

Column C

Column D

Column E

Classification of Items for Contracts

Agreed Terms

Example Clauses to be Included in the Contract

Supplementary Explanations

【Column B: Classification of Items for Contracts】

As part of the contractual matters, the terms to be considered when contracting with service providers are labeled as "Basic Terms." The selection or expansion of contractual matters are to be considered, taking into account the project type, the project stage, the project's risk level, etc., as stated in "6.1.2 Measures to be Addressed Based on this Guideline."

【Column C: Contractual Matters】

As part of the contractual matters, these items are to be considered to be included in the contract with service providers.

[Column D: Example Clauses to be Included in the Contract]

These are examples of clauses that fulfill the terms listed in "Column C: Contractual Matters". It is not necessary to strictly adopt these example clauses as they are.

[Column E: Supplementary Explanations]

Supplementary explanations are provided for "Column C: Contractual Matters" and "Column D: Example Clauses to be Included in the Contract."

* "Column D: Example Clauses to be Included in the Contract" and "Column E: Supplementary Explanations" provide example clause content and supplementary explanations for incorporating the contractual matters into contracts. Planners should select and incorporate these into contracts or procurement specifications as necessary, considering the features of the generative AI system being procured, the characteristics of the project, and the results of the risk assessment.

How to Use this Check Sheet

- Planners should incorporate necessary items from "Column C: Contractual Matters" into the contract or procurement specifications.
 - *In principle, terms listed in "Column C: Contractual Matters" are mandatory items to be fulfilled for inclusion in the contract or procurement specifications.
 - *"Column D: Example Clauses to be Included in the Contract" are literally examples and do not necessarily need to be fully satisfied. Adherence to requirements by using the methods other than these examples is also acceptable.
 - *Additionally, include necessary items in this check sheet to documents such as the "Requirements Definition Document" or "Procurement Specifications" created in relation to the procurement for procuring government information systems.

Scope of this Check Sheet

This check sheet applies to systems that incorporate generative AI, as described in "2.2.2 Generative AI Targeted by this Guideline," within the government information systems mentioned in "2.2.1 Information Systems Targeted by this Guideline."

Supplementary Explanation of Terms

- Generative AI: A general term representing AI developed from an AI model that can generate texts, images, programs, etc. (Source: AI Guidelines for Business, P.10)
- Generative AI System: An AI system that incorporates generative AI as a component. (In accordance with AI Guidelines for Business, P.9)
- Generative AI Model: An AI model that can generate texts, images, programs, etc. (In accordance with AI Guidelines for Business, P.10) In this Guideline, the term "Generative AI Model" refers to a generative AI model that incorporates generative AI targeted by this guideline as a component.
- User: In this Contract Check Sheet, the term "users" refers to government staff involved in the use of generative AI systems ("Planners," "Developers," "Providers," and "Users") and external users.
- Training: Training is the process of determining or improving the parameters of an AI model using data, and consists of two processes: pre-training, which builds the foundation model, and post-training, which involves continuous parameter adjustments as needed. Training encompasses methods such as supervised learning, unsupervised learning, and reinforcement learning. The data used for training is divided into training data, validation data, and test data, which are used for the building and evaluation of AI models. (Source: AI Guidelines for Business, P.10)
- Raw Data for Training: Data provided to a service provider by users for use in training a generative AI model.
- Training Data: Data created by the service provider for training purposes through processing and modification, etc. of the raw data (for training) provided by users.
- Input: Prompts, raw data for training, etc. (Note: Does not include results of processing inputs.)
- Results of Processing Inputs: Training data, intermediate products, and derivative intellectual property, etc. (Note: This refers to intangibles that have undergone some processing (modification, etc.) from inputs and may be referred to as "derivatives," "derivative intellectual property," "derivative data," "improvement results," etc. Intermediate products, such as learning datasets derived from raw data, are typically assumed.)
- Output: AI-generated content such as analysis results and other content. (Note: Does not include results of processing outputs.)
- Results of Processing Outputs: Content modified by the user from outputs generated by AI-related services, etc. (Note: This refers to intangibles that have undergone some processing (modification, etc.) from outputs and may be referred to as "derivatives," "derivative intellectual property," "derivative data," "improvement results," etc.)
- Know-how: Expertise, technology, information, etc. that constitute intellectual property and are held or acquired by the service provider or user during the research, development, and utilization processes of AI technology. (Note: Assumed examples of know-how include the following; obtaining raw data, modifying raw data suitable for training, training using training programs, tuning trained models, training history, and prompt history, etc.)
- Information Security Incidents: Refers to information security incidents as defined in JIS Q 27000:2019.
- Risk Cases Particular to Generative AI Systems: A condition where risks inherent to a generative AI system have materialized, or where signs or events indicating the possible materialization of such risks are observed, which may have significant impacts.

Contract Check Sheet				
Note: The selection or expansion of contractual matters are to be considered, taking into account the project type, the project stage, the project's risk level, etc., as stated in "6.1.2 Measures to be Addressed Based on this Guideline."				
Item No.	Classification of Items for Contracts	Contractual Matters	Example Clauses to be Included in the Contract	Supplementary Explanations
				In this Contract Check Sheet, the term "users" refers to government staff involved in the use of generative AI systems (in principle, "Planners," "Developers," "Providers," and "Users") and external users.
1	Basic Terms	Agreements Regarding Inputs Related to Generative AI Systems	Clauses stipulating the definition of inputs, purposes of input uses, conditions for input uses, ownership of rights related to inputs.	The following considerations are advisable when stipulating the clauses. Define the scope of inputs subject to contractual rules as service providers might freely use inputs without restrictions. Stipulate obligations prohibiting service providers from using or retaining inputs, in principle, for purposes other than those related to the provision of the generative AI system. When granting permission for service providers to use inputs, set clear conditions for such usage (i.e. whether training is involved, what the methods of data storage are). Stipulate the conditions for the acquisition of rights under which service providers may acquire certain rights, such as intellectual property rights relating to inputs. The conditions should include matters such as the scope of rights transfer of the inputs, presence or absence of consideration of the rights, and the existence and terms of licensing the inputs, and any other relevant matters.
2	Basic Terms	Agreements Regarding Results of Processing Inputs Related to Generative AI Systems	Clauses regarding results of inputs (other than outputs), which stipulate the scope of the results covered by contractual rules, purposes of using the results, conditions for using the results, and ownership of rights of the results.	The following considerations are advisable when stipulating the clauses. Define the scope of results of processing inputs subject to contractual rules as service providers might freely use them without restrictions. Stipulate obligations prohibiting service providers from using or retaining results of processing inputs, in principle, for purposes other than those related to the provision of the generative AI system. When granting permission for service providers to use results of processing inputs, set clear conditions for such usage (i.e. whether training is involved, what the methods of data storage are). Stipulate the conditions of the acquisition of rights under which service providers may acquire certain rights, such as intellectual property rights, relating to results of processing inputs, which should address matters such as the scope of rights transfer, presence or absence of consideration of the rights, existence and terms of licensing the rights, and any other relevant conditions. *When RAG is included as a component, the database is generally treated as a deliverable. However, it is advisable to consider whether related parsers (programs that convert data into text data for RAG), text-splitting programs, vector conversion programs, etc. should also be included in the deliverables, or whether their functions should be provided through Web APIs, etc., and to incorporate their ownership of rights and methods of use into the contract.
3	Basic Terms	Agreements Regarding Outputs Related to Generative AI Systems	Clauses stipulating the definition of outputs, whether the service provider has the obligation to provide outputs to users and the details of the obligation, requirements for warranties from the service provider related to outputs, conditions under which users may provide outputs to third parties, and the ownership of rights regarding outputs that the service provider supplies to users.	The following considerations are advisable when stipulating the clauses. As for outputs subject to contractual rules, define the scope of outputs in a way that fully covers the user's purposes for service use. If the service provider is obligated to provide outputs, define the conditions for the provisions, including timing, frequency, state, and other conditions, as well as the details of the outputs provided, such as their nature, quantity, and granularity, in light of the user's purposes for service use. In cases where the service provider is responsible for warranties or information provision regarding outputs, set the terms and conditions for such warranties and information provision. Define third-party provision conditions, including the recipients, scope of provision, and other related conditions. Stipulate the conditions for the acquisition of rights under which users may acquire certain rights, such as intellectual property rights, relating to the outputs. The conditions should address the scope of rights transfer, presence or absence of consideration of the rights, existence and terms of licensing the rights, and any other relevant matters.
4	Basic Terms	Agreements Regarding Results of Processing Outputs Related to Generative AI Systems	Clauses regarding results of processing outputs, which stipulate the scope of the results covered by contractual rules, external provision of the results by users, and ownership of rights of the results.	The following considerations are advisable when stipulating the clauses. For the results of processing outputs subject to contractual rules, define the scope of these results in a way that fully covers the user's purposes for service uses. Define external provision conditions, including the recipients of the results, scope of the provision of the results, and other relevant conditions, in light of the user's purposes for service uses. When acquiring certain rights, such as intellectual property rights, stipulate the conditions of the acquisition of the rights, including the scope of rights transfer, presence or absence of consideration of the rights, and the existence and terms of licensing the rights, and any other relevant conditions.
5	Basic Terms	Contractual Agreements Related to Generative AI Systems	Clauses stipulating the obligation for the service provider to carry out the activities necessary to meet the expected quality in constructing the generative AI system or to complete the construction of the generative AI system.	As a premise for incorporating terms concerning expected quality into the contract, it is necessary to clarify what the deliverables are. In the case of development of a generative AI system, if the generative AI model itself is not a deliverable, it is desirable to clearly specify the parts corresponding to system components as deliverables, such as the user interface, system prompt, file database, vector database, input filter, output filter, external integration component, etc. In order for the generative AI system to meet the expected quality under the contract, there are forms such as directly stipulating the expected quality as contractual terms, or stipulating the contents of activities to be implemented to ensure quality. It is necessary to consider which form to select, taking into account the nature of the deliverables and the purpose of the procurement. Performance and output quality attributable to the generative AI model may be affected by characteristics such as the training data and foundation model, and it may be difficult in some cases to provide a warranty of outcomes, such as "accuracy of XX or higher." In such cases, rather than treating that part as subject to an outcome warranty, it is desirable to adopt a contractual form, such as one under which the service provider provides technical support for performance improvement and quality enhancement. However, even with respect to system components other than the generative AI model, for example, when considering "prompt design/evaluation work for the purpose of constructing system prompts," it is considered difficult to clearly define deliverables for the parts related to design, evaluation, and tuning. Therefore, it is desirable to incorporate into the contract whether the relevant activities have been carried out. In addition, the following may be treated as deliverables under a contract for work: system prompts that do not include performance requirements but satisfy formal requirements, such as having a specified structure, including specified elements, and meeting the upper limit on token length; prompt test scenarios; and sets of configuration parameters, such as the degree of freedom of responses and the upper limit on output tokens. Accordingly, it is necessary to carefully consider, taking into account the purpose of the procurement, whether the scope of deliverables under the contract falls within a range for which quality can be assured.
6	Basic Terms	Agreements for Know-how Related to Generative AI Systems	Clauses regarding the know-how of the service provider or the user that define such know-how as intellectual property (*), conditions for the user's usage of the service provider's know-how, conditions for the service provider's usage of the user's know-how, and ownership of rights. (*) "Intellectual property" means inventions, devices, designs, works and other property that is produced through creative activities by human beings (including discovered or solved laws of nature or natural phenomena that are industrially applicable), trade secrets and other technical or business information that is useful for business activities.	Since information that does not fit the definition of know-how may potentially be freely used by the service provider, unless restricted by applicable laws, it is advisable to stipulate, through this clause, the scope of know-how subject to contractual rules, the conditions of usage by both the user and the service provider(*), and the ownership of rights of the know-how. *Especially, consideration of whether to allow usage beyond the service provision purposes, such as the service provider's technological development or learning purposes, should be reviewed and incorporated into the contract.
7	Basic Terms	Agreements for Deliverables Related to Generative AI Systems	Clauses stipulating, with respect to deliverables, the definition of deliverables, the service provider's obligation to complete the deliverables for users or the conditions for completion and the details thereof, and the ownership of rights to the deliverables.	It is desirable to define the scope of deliverables subject to contractual rules so that the definition of deliverables sufficiently covers the user's purpose of using the service.(*) In cases where the service provider is obligated to complete and provide the deliverables, it is desirable to define the conditions for providing them, such as timing, frequency, manner, and other conditions, as well as the content of the deliverables to be provided, such as their nature, quantity, granularity, and other content, in light of the user's purpose of using the service. In cases where users acquire certain rights, such as intellectual property rights, etc., relating to the deliverables, it is desirable to stipulate the conditions of the acquisition of rights, including the scope of rights transfer, presence or absence of consideration of the rights, the existence and terms of licensing the rights, and any other relevant conditions. *When system prompts are included as components, possible deliverables may include prompt templates, prompt text, and sets of configuration parameters, such as the degree of freedom of responses and the upper limit on output tokens. However, in light of the diverse forms that deliverables may take, it is necessary to clearly define the deliverables in contracts and related documents and to share an understanding of the deliverables in advance among the contracting parties.
8	Basic Terms	Agreements on the Service Provider's Obligations of Responses, Cooperation, and the Scope of these Responses, in cases of Information Security Incidents or Risk Cases Particular to Generative AI Systems	Clauses obligating the service provider to respond, cooperate, and provide the related data in response to information security incidents or risk cases particular to generative AI systems.	It is necessary to reach an agreement with the service provider in advance on minimizing harm from information security incidents or risk cases particular to generative AI systems, providing information and data to a reasonable extent (including as necessary the generative AI system's training data or algorithms) to the government upon requests, identifying causes of service outage, information security incidents, or said risk cases, implementing improvement measures, and conducting audits as necessary.
9	Basic Terms	Agreements to Minimize Harm Originating From Situations Where the Expected Quality Level is not fulfilled, and to Identify Causes and Implement Measures for Improvement	Clauses requiring to minimize harm originating from situations where the expected quality level is not fulfilled, and to identify causes and implement improvement measures.	Assuming those cases where the expected quality level of the generative AI system is not fulfilled, agreements should be reached beforehand on minimizing resulting harm, identifying causes, and implementing improvement measures by the service provider.